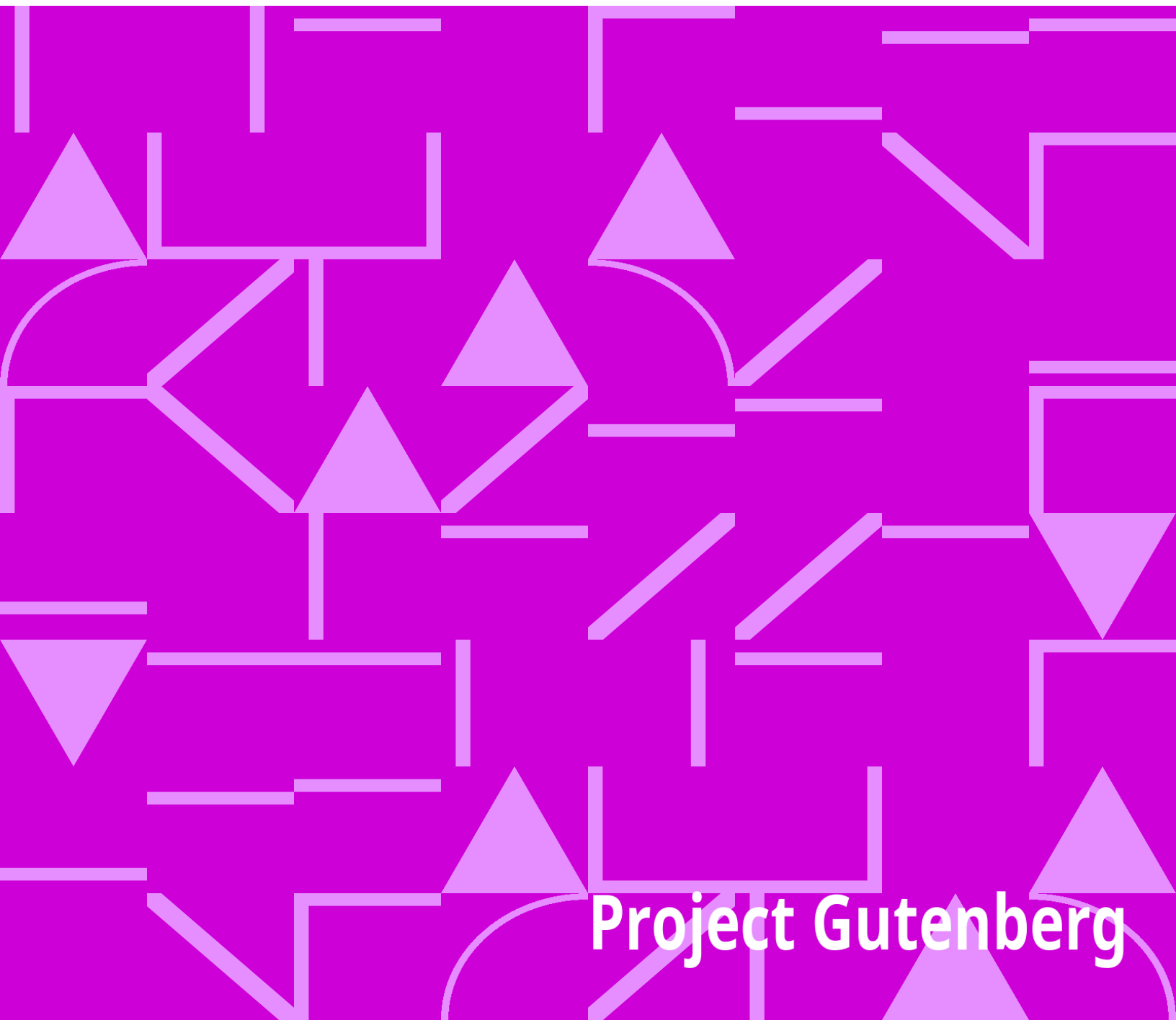


The Ordeal: A Mountain Romance of Tennessee

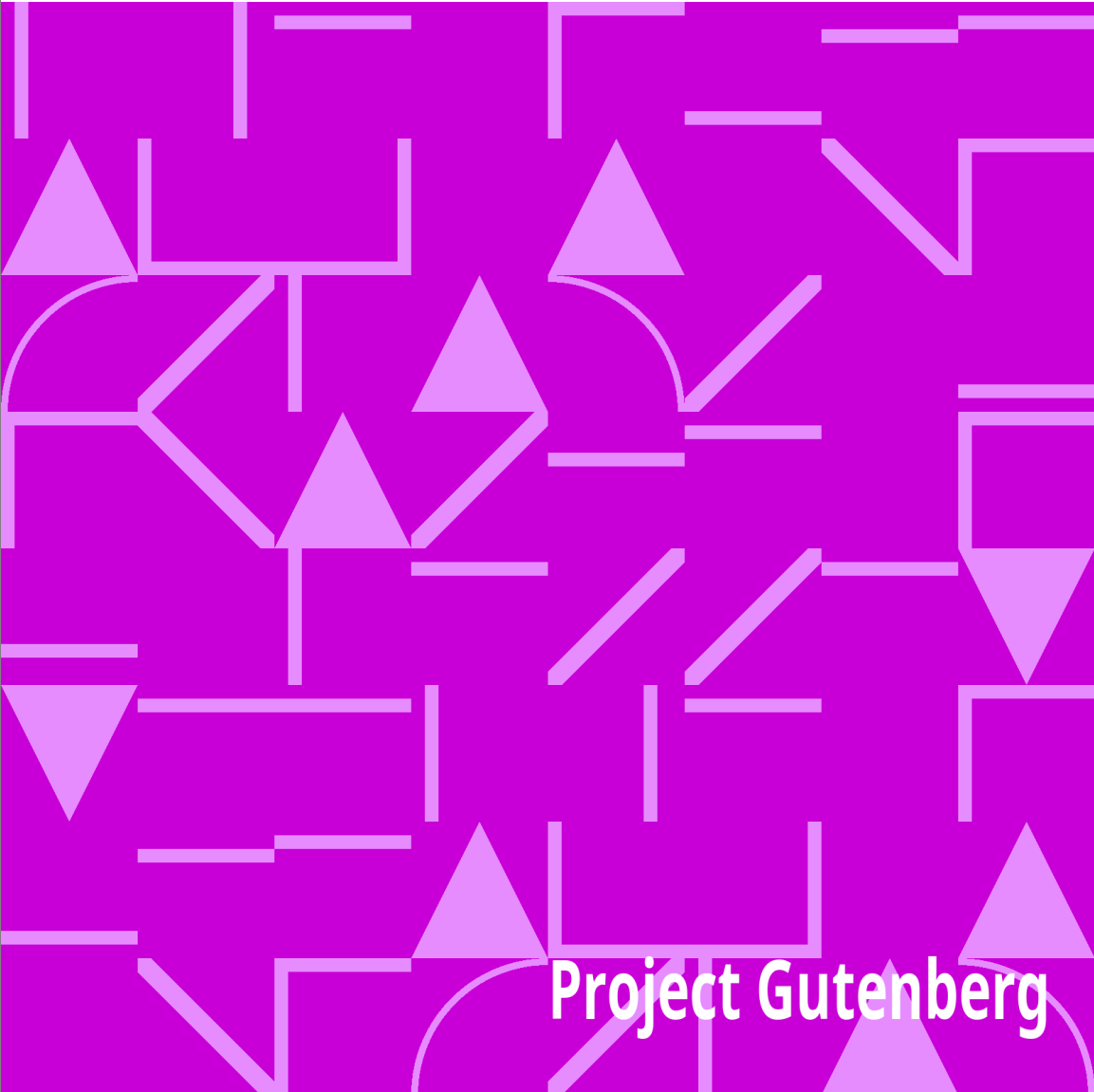
Charles Egbert Craddock



Project Gutenberg

The Ordeal: A Mountain Romance of Tennessee

Charles Egbert Craddock



Project Gutenberg

The Project Gutenberg eBook of The Ordeal: A Mountain Romance of Tennessee

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Ordeal: A Mountain Romance of Tennessee

Author: Charles Egbert Craddock

Illustrator: Douglas Duer

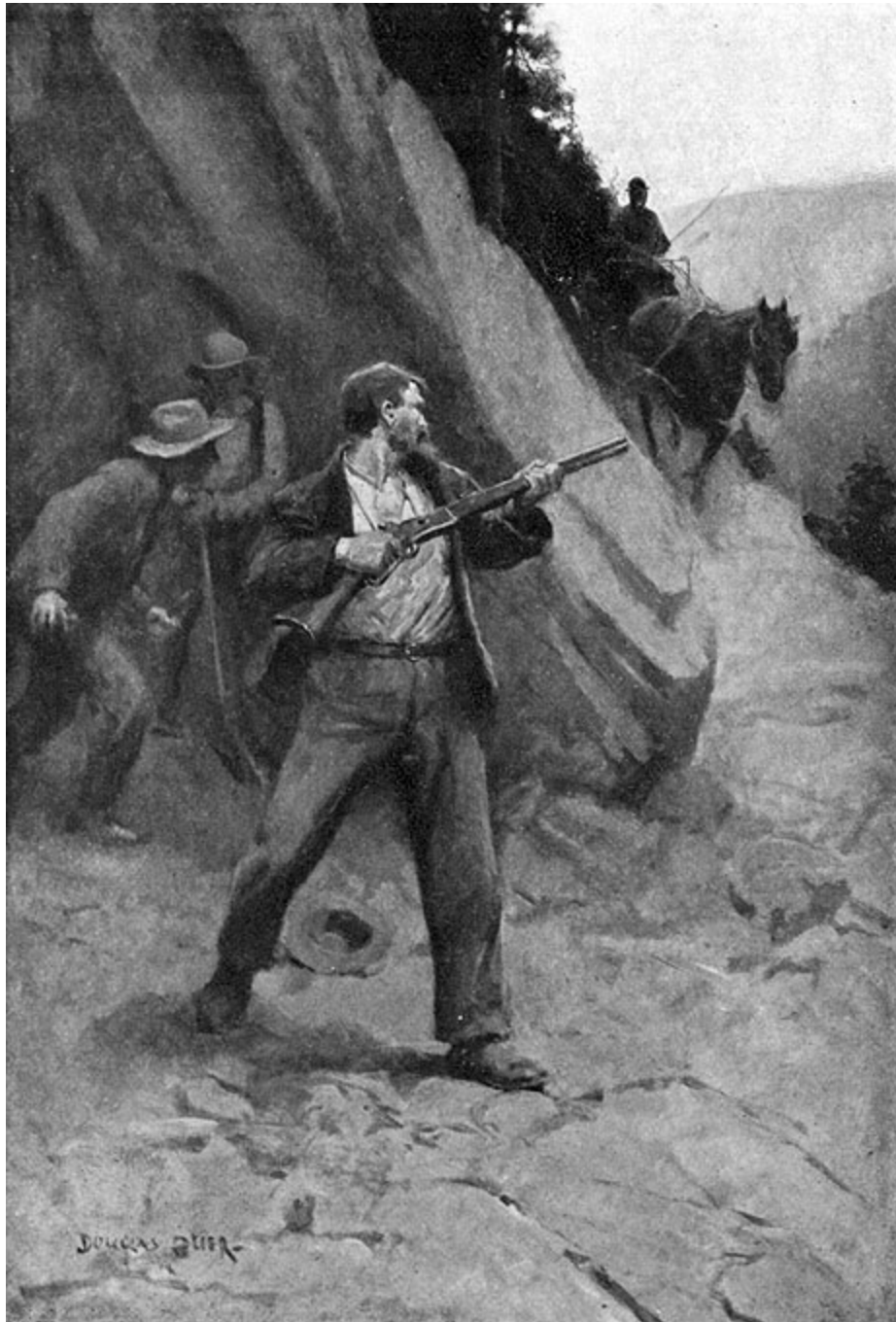
Release date: November 13, 2006 [eBook #19776]

Language: English

Other information and formats: www.gutenberg.org/ebooks/19776

Credits: Produced by The Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive/American Libraries.)

*** START OF THE PROJECT GUTENBERG EBOOK THE ORDEAL:
A MOUNTAIN ROMANCE OF TENNESSEE ***



A SWIFT, ERECT FIGURE STEPPED INTO THE MIDDLE OF THE ROAD
Page 101

THE ORDEAL

A MOUNTAIN ROMANCE OF TENNESSEE

BY

CHARLES EGBERT CRADDOCK

AUTHOR OF

"THE RAID OF THE GUERILLA,"

"THE PROPHET OF THE GREAT SMOKY MOUNTAINS,"

"THE FAIR MISSISSIPPIAN," ETC.

**WITH A FRONTISPIECE IN COLOR BY
DOUGLAS DUER**



**PHILADELPHIA & LONDON
J. B. LIPPINCOTT COMPANY
1912**

**COPYRIGHT, 1911, BY J. B. LIPPINCOTT COMPANY
COPYRIGHT, 1912, BY J. B. LIPPINCOTT COMPANY**

PUBLISHED SEPTEMBER, 1912

**PRINTED BY J. B. LIPPINCOTT COMPANY
AT THE WASHINGTON SQUARE PRESS
PHILADELPHIA, U.S.A.**

Transcriber's Notes:

This paragraph in Chapter II. is obviously a printer's error:

Here they found a change of sentiment prevailing. Although failing in no observance of courtesy, Mrs. Briscoe had been a little less than complaisant toward the departed guest. This had been vaguely perceptible to Briscoe at the time, but now she gency constrained him."

In addition, a Table of Contents has been created for the convenience of the reader.

Contents

- I.
 - II.
 - III.
 - IV.
 - V.
 - VI.
 - VII.
 - VIII.
 - IX.
 - X.
 - XI.
 - XII.
 - XIII.
 - XIV.
-

THE ORDEAL

I.

Nowhere could the idea of peace be more serenely, more majestically, expressed. The lofty purple mountains limited the horizon, and in their multitude and imposing symmetry bespoke the vast intentions of beneficent creation. The valley, glooming low, harbored all the shadows. The air was still, the sky as pellucid as crystal, and where a crag projected boldly from the forests, the growths of balsam fir extending almost to the brink, it seemed as if the myriad fibres of the summit-line of foliage might be counted, so finely drawn, so individual, was each against the azure. Below the boughs the road swept along the crest of the crag and thence curved inward, and one surveying the scene from the windows of a bungalow at no great distance could look straight beyond the point of the precipice and into the heart of the sunset, still aflame about the west.

But the realization of solitude was poignant and might well foster fear. It was too wild a country, many people said, for quasi-strangers, and the Briscoes were not justified in lingering so long at their summer cottage here in the Great Smoky Mountains after the hotel of the neighboring springs was closed for the season, and its guests and employees all vanished townward. Hitherto, however, the Briscoes had flouted the suggestion, protesting that this and not the spring was the "sweet o' the year." The autumn always found the fires flaring on the cosy hearths of their pretty bungalow, and they were wont to gaze entranced on the chromatic pageantry of the forests as the season waned. Presently the Indian summer would steal upon them unaware, with its wild sweet airs, the burnished glammers of its soft red sun, its dreamy, poetic, amethystine haze. Now, too, came the crowning opportunity of sylvan sport. There were deer to stalk and to course with horses, hounds, and horns; wild turkeys and mountain grouse to try the aim

and tax the pedestrianism of the hunter; bears had not yet gone into winter quarters, and were mast-fed and fat; even a shot at a wolf, slyly marauding, was no infrequent incident, and Edward Briscoe thought the place in autumn an elysium for a sportsman.

He had to-day the prospect of a comrade in these delights from his own city home and of his own rank in life, despite the desertion of the big frame hotel on the bluff, but it was not the enticement of rod and gun that had brought Julian Bayne suddenly and unexpectedly to the mountains. His host and cousin, Edward Briscoe, was his co-executor in a kinsman's will, and in the settlement of the estate the policy of granting a certain power of attorney necessitated a conference more confidential than could be safely compassed by correspondence. They discussed this as they sat in the spacious reception hall, and had Bayne been less preoccupied he must have noticed at once the embarrassment, nay, the look of absolute dismay, with which Briscoe had risen to receive him, when, unannounced, he appeared in the doorway as abruptly as if he had fallen from the clouds. As it was, the brief colloquy on the business interests that had brought him hither was almost concluded before the problem of his host's manner began to intrude on Bayne's consciousness. Briscoe's broad, florid, genial countenance expressed an unaccountable disquietude; a flush had mounted to his forehead, which was elongated by his premature baldness; he was pulling nervously at his long dark mustache, which matched in tint the silky fringe of hair encircling his polished crown; his eyes, round and brown, and glossy as a chestnut, wandered inattentively. He did not contend on small points of feasibility, according to his wont—for he was of an argumentative habit of mind—in fact, his acquiescence in every detail proposed was so complete and so unexpected that Bayne, with half his urgency unsaid, came to the end of his proposition with as precipitate an effect as if he had stumbled upon it in the dark.

"Well, that's agreed, is it? Easily settled! I really need not have come—though"—with a complaisant after-thought—"it is a pleasure to look in on you in your woodland haunts."

Briscoe suddenly leaned forward from his easy chair and laid his hand on his cousin's knee.

"Julian," he said anxiously, "I hate to tell you—but my wife has got that woman here."

Bayne stared, blankly unresponsive. "What woman?" he asked wonderingly.

"Mrs. Royston, you know—Lillian Marable, that was."

Bayne looked as if suddenly checked in headlong speed—startled, almost stunned. The blood rushed in a tumultuous flood to his thin cheeks, then receded, leaving his face mottled red and white. His steel-gray eyes suddenly glowed like hot metal. There was a moment of tense silence; then he said, his voice steady and controlled, his manner stiff but not without dignity, "Pray do not allow that to discompose you. She is nothing to me."

"I know—I know, of course. I would not have mentioned it, but I feared an unexpected meeting might embarrass you, here in this seclusion where you cannot avoid each other."

"You need not have troubled yourself," Bayne protested, looking fixedly at his cigar as he touched off the long ash with a delicate fillip.

There was a great contrast in the aspect of the two, which accorded with their obvious differences of mind and temperament. Briscoe, a man of wealth and leisure, portly and rubicund, was in hunting togs, with gaiters, knickers, jacket, and negligee shirt, while Bayne, with no trace of the disorder incident to a long journey by primitive methods of transportation, was as elaborately groomed and as accurately costumed in his trig, dark brown, business suit as if he had just stepped from the elevator of the skyscraper where his offices as a broker were located. His manner distinctly intimated that the subject was dismissed, but Briscoe, who had as kindly a heart as ever beat, was nothing of a diplomat. He set forth heavily to justify himself.

"You see—knowing that you were once in love with her——"

"Oh, no, my dear fellow," Bayne hastily interrupted; "I never loved *her*. I loved only my own dream of one fair woman. It did not come true, that's all."

Briscoe seemed somewhat reassured, but in the pervasive awkwardness of his plight as host of both parties he could not quit the subject. "Just so," he acquiesced gladly; "a mere dream—and a dream can make no sensible man unhappy."

Bayne laughed with a tense note of satire. "Well, the awakening was a rude jar, I must confess."

For it had been no ordinary termination of an unhappy love affair. It befell within a fortnight of the date set for the prospective marriage. All the details of publicity were complete: the cards were out; the "society columns" of the local journals had revelled in the plans of the event; the gold and silver shower of the bridal presents was raining down. The determining cause of the catastrophe was never quite clear to the community—whether a lover's quarrel with disproportionate consequences, by reason of the marplot activities of a mercenary relative of the lady's, advocating the interests of a sudden opportunity of greater wealth and station; or her foolish revenge for a fancied slight; or simply her sheer inconstancy in a change of mind and heart. At all events, without a word of warning, Julian Bayne, five years before, had the unique experience of reading in a morning paper the notice of the marriage of his promised bride to another man, and of sustaining with what grace he might the rôle of a jilted lover amidst the ruins of his nuptial preparations.

In the estimation of the judicious, he had made a happy escape, for the cruelty involved in the lady's methods and the careless flout of the opinion of the sober, decorous world were not *indicia* of worthy traits; but he was of sensitive fibre, and tingled and winced with the consciousness of the cheap gibe and the finger of scorn. He often said to himself then, however, as now

to the friend of his inmost thought, "I would not be bound to a woman capable of such treachery for——"

Words failed him, inadequate, though he spoke calmly. His face had resumed its habitual warm pallor. His clear-cut features, something too sharply defined for absolute regularity, with the unassertive effect of his straight auburn hair, his deliberate, contemplative glance, his reserved, high-bred look, the quiet decorum of his manner, were not suggestive of the tumult of his inner consciousness, and the unresponsiveness of his aspect baffled Briscoe. With some inapposite, impulsive warmth he protested: "But she has had bitter cause for repentance, Julian. Royston was a brute. The only decent thing he ever did was dying! She has been an awfully unhappy woman. I know you will be sorry for that."

"Neither glad nor sorry. She is nothing to me. Not because she dealt me a blow after a very unfair fashion, but because she is nothing in herself that I could really care for. She has no delicate sensibilities, no fine perceptions; she is incapable of constancy. Don't you understand? She has no capacity to feel."

Briscoe had a look of extenuating distress—a sentiment of loyalty to his fair guest. "Oh, well, now, she is devoted to her child—a most loving mother."

"Certainly, she may grow in grace—let us hope that she will! And now suppose we talk a little about that wonderful magazine shot-gun you have so often offered to lend me. This is my chance to prove its values—the only time in the last five years that I could spare a week from the office."

He rose and turned with his easy, lithe grace towards the gun-rack, but Briscoe sat still in pondering dismay. For it was obvious that Julian Bayne had no intention of soon relaxing the tension of the situation by the elimination of the presence of the jilted lover. Pride, indeed, forbade his flight. His self-respect clamored for recognition. There was no cause for humiliation in his consciousness, and he could not consent to abase himself before the untoward and discordant facts. He did not disguise from himself,

however, that, if he might have chosen earlier, he would have avoided the ordeal of the meeting, from which he shrank in anticipation. Already he was poignantly conscious of the heavy draughts it made on his composure, and he raged inwardly to note how his fingers trembled as he stood before the rack of guns, now and again a weapon in his hands, feigning an interest in examining the construction first of one and then of another.

The entire place suggested a devotion to sport and whole-souled hospitality. The vast spread of the autumnal landscape, in wonderful clarity and depth of tint, was visible through the large, open front doors. There was an effort to maintain in this apartment the aspect in some sort of a lodge in the wilderness; the splendid antlers over the mantel-piece, beneath which, in a deep stone chimney-place, a fire of logs smouldered; the golden eagle, triumph of taxidermy, poising his wings full-spread above the landing of the somewhat massive staircase; the rack of weapons—rifles, shot-guns, hunting-knives; the game-bags; the decoration of the walls, showing the mask and brush of many a fox, and the iridescent wings of scores of wild-fowl; the rugs scattered about made of the pelts of wolves, catamounts, and bears of the region—all served to contribute to the sylvan effect. But the glister of the hardwood floor, waxed and polished; the luxury of the easy chairs and sofas; the centre-table strewn with magazines and papers, beneath a large lamp of rare and rich ware; the delicate aroma of expensive cigars, were of negative, if not discordant, suggestion, and bespoke the more sophisticated proclivities and training of the owner.

In the interval of awkward silence, Briscoe remained motionless in his easy chair, a rueful reflectiveness on his genial face incongruous with its habitual expression. When a sudden disconcerted intentness developed upon it, Bayne, every instinct on the alert, took instant heed of the change. The obvious accession of dismay betokened the increasing acuteness of the crisis, and Briscoe's attitude, as of helpless paralysis, stricken as it were into stone as he gazed toward the door, heralded an approach.

There were light footfalls on the veranda, a sudden shadow at the door. The next moment two ladies were entering, their hands full of autumn leaves, trophies of their long walk. Bayne, summoning to his aid all the

conservative influences of pride and self-respect, was able to maintain an aspect of grave composure as, fully warned, he turned to meet them. Nevertheless, the element of surprise to the new-comers rendered it an awkward moment to all the group. Mrs. Briscoe, considerably in advance of her guest, paled at the sight of him, and, silent and visibly shocked, paused as abruptly as if she beheld a ghost. It was a most uncharacteristic reception, for she was of a gracious and engaging personality and a stately type of beauty. She was tall and graceful, about thirty years of age, in full bloom, so to speak, extremely fair, the delicacy of her complexion enhanced by the contrast with her dark hair worn *en pompadour*. Her gown of dark red cloth, elaborately braided and with narrow borders of otter fur, had a rich depth of color which accorded with her sumptuous endowments.

The rôle of cordial hostess she was wont to play with especial acceptability, but now she had lost its every line, its most trivial patter. She said not one word as Bayne clasped her hand with the conventional greeting, but only looked at him with her hazel eyes at once remonstrant, pleading, compassionate.

The moment of vantage, short as it was, afforded by the precedence of her hostess in the matter of salutation, gave Mrs. Royston the opportunity to catch her breath and find her voice. She had not seen this man since, five years ago, he had left her home her expectant bridegroom. But beyond a fluctuating flush in her fair cheek, a dilation of her blue eyes, a flutter of those eyelids which he had always esteemed a special point of her beauty, being so smooth, so full, so darkly lashed, she conserved an ostensible calm, although she felt the glance of his eye as sensitively as red hot steel. But he—as he dropped the hand of his hostess and advanced toward her guest—in one moment his fictitious composure deserted him. For this was not the widow in weeds whom he had expected to see, not the woman of whom he had trained himself to think, when he must needs think of her at all, as another man's wife. This was his own fair Past, the unfulfilled promise of his future, the girl he had adored, the ideal wife whom he had worshipped in his cherished dreams! Just as always heretofore, she stood now, so fresh, so fair, so candid-seeming, wearing her white serge gown with her usual distinction, a spray of golden-rod fastened in her mass of

yellow hair that glowed with a sheen of differing gold. How had time spared her! How had griefs left her scathless! It was an effort to reflect that two years and more had elapsed since he had read the obituary of Archibald Royston, with scornful amusement to mark the grotesque lie to the living in the fulsome tribute to the dead.

In some sort, Bayne was prepared for change, for the new identity that the strange falling out of events betokened. He had never realized her, he had never divined her character, he would have said. She was now, as she had always been, an absolute stranger. But this little hand—ah, he knew it well! How often it had lain in his clasp, and once more every fibre thrilled at its touch. With all his resolution, he could not restrain the flush that mounted to his brow, the responsive quiver in his voice as he murmured her name, the name of Archibald Royston's wife, so repugnant to his lips. He was in a state of revolt against himself, his self-betrayal, to realize that she and the two Briscoes could not fail to mark his confusion, attributing his emotion to whatsoever cause they would. Indeed, in the genial altruism of host, Briscoe had succeeded in breaking from the thrall of embarrassment to shield and save the situation.

"Why, here is Archie!" he exclaimed resonantly. "How are *you*, old man?" His clear tones were vibrant with disproportionate elation at the prospect of a diversion of the painful interest of the scene.

For at the moment a fine blond boy of three years burst in at the rear door of the apartment and came running to meet Mrs. Royston, just apprised, doubtless, of her return from her afternoon stroll. He looked very fresh in his white linen dress, his red leather belt, and twinkling red shoes. With the independent nonchalance of childhood, he took no note of the outstretched arms and blandishing smile of Mr. Briscoe, who sought to intercept him, but made directly toward his mother. His gleaming reflection sped along in the polished, mirroring floor, but all at once both semblance and substance paused. With a sudden thought the child put his dimpled hands over his smiling pink face, while his blue eyes danced merrily between the tips of his fingers. Then he advanced again, lunging slowly along, uttering the while a menacing "Mew! Mew! Mew!"

His mother had no heart for his fun. She could scarcely summon the strength and attention requisite for this fantastic infantile foolery when all her capacities were enlisted to support her dignity in the presence of this man, necessarily inimical, censorious, critical, who had once meant so much in her life. But she could not rebuff the baby! She would not humble his spirit! She must enter into his jest, whatever the effort cost her.

It was poor acting certainly. She affected fright, as the child expected. She cowered dismayed. "Oh, oh!" she cried, watching his erratic approach. "What is that?" She pretended flight, but sank into a chair, apparently overpowered. She gazed down at the child with the lifted hands of horror as he clasped the folds of her gown, his eyes shining with fun, his teeth glittering between his red lips, his laughter rippling with delight. "Me scared oo,' mamma," he squealed ecstatically. "Oo didn't know what me was. Oo t'ought me was a great big bear."

Whereupon she looked down at him with amazed recognition. "Is it *you*, Archie? Dear me, I thought it was a great big bear."

"Mew! Mew! Mew!" he repeated in joy.

"Why, Archie, old man, bears don't mew!" cried the genial Briscoe, recovering his equanimity. "Bears *growl*—didn't you know that?"

He straightway began to teach the little fellow a very noisy and truculent vocalization of the ursine type, which Archie, who was a great favorite with his host, eagerly imitated, Briscoe appearing throughout the duet at the pitiable disadvantage of the adult imbecile disporting himself in infantile wise.

The tumult of the child's entrance had the effect of relaxing for Briscoe the tension of the situation, but when Archie's nurse appeared at the door and he ran away at her summons, the host looked apprehensively about the circle as the party ranged themselves around the fire, its glow beginning to be welcome in the increasing chill of the evening. Ordinarily, this was a household of hilarious temperament. Life had been good to the Briscoes, and they loved it. They were fond of rich viands, old wines, genial talk,

good stories, practical jests, music, and sport; the wife herself being more than a fair shot, a capital whip, and a famous horsewoman. Even when there was no stranger within the gates, the fires would flare merrily till midnight, the old songs echo, and the hours speed away on winged sandals. But this evening neither host nor hostess could originate a sentence in the presence of what seemed to their sentimental persuasions the awful tragedy of two hearts. Indeed, conversation on ordinary lines would have been impossible, but that Bayne with an infinite self-confidence, as it seemed to Mrs. Briscoe, took the centre of the stage and held it. All Bayne's spirit was up! The poise and reserve of his nature, his habit of sedulous self-control, were reasserted. He could scarcely forgive himself their momentary lapse. He felt it insupportable that he should not have held his voice to normal steadiness, his pulses to their wonted calm, in meeting again this woman who had wrought him such signal injury, who had put upon him such insufferable indignity. Surely he could feel naught for her but the rancor she had earned! From the beginning, she had been all siren, all deceit. She was but the semblance, the figment, of his foolish dream, and why should the dream move him still, shattered as it was by the torturing realities of the truth? Why must he needs bring tribute to her powers, flatter her ascendancy in his life, by faltering before her casual presence? He rallied all his forces. He silently swore a mighty oath that he at least would take note of his own dignity, that he would deport himself with a due sense of his meed of self-respect. Though with a glittering eye and a strong flush on his cheek, he conserved a deliberate incidental manner, and maintained a pose of extreme interest in his own prelection as, seated in an arm-chair before the fire he began to talk with a very definite intention of a quiet self-assertion, of absorbing and controlling the conversation. He described at great length the incidents of his trip hither, and descanted on the industrial and political conditions of east Tennessee. This brought him by an easy transition to an analysis of the peculiar traits of its mountain population, which included presently their remarkable idiosyncrasies of speech. When he was fairly launched on this theme, which was of genuine interest to him, for he had long fostered a linguistic fad, all danger of awkward silence or significant pauses was eliminated. He found that Briscoe could furnish him with some fresh points in comparative philology, to his surprise and gratification, for he never expected aught bookish of his host. But like men of his type,

Briscoe was a close observer and learned of the passing phase of life. He took issue again and again with the deductions of the traveller.

"You think it queer that they use 'you-uns' in the singular number? Then why do you use 'you' in the singular number? I haven't heard you 'thou-ing' around here this evening. Just as grammatical in that respect as you are! And on the same principle, why do you say 'you were' to me instead of 'you was,' which would be more singular—ha! ha! ha!"

"What *I* think so curious is the double-barrelled pronouns themselves, 'you-uns' and 'we-uns.'" Mrs. Royston forced herself to take part in the colloquy at the first opportunity.

"Not at all queer," Bayne promptly contended. "The correlatives of that locution appear in other languages. The French has *nous autres*, the Italian, *noi altri*, the Spanish, *nosotros*."

"And pray consider our own classical 'we-all,'" Mrs. Briscoe gayly interposed, surprised that she could pluck up the spirit for this interruption.

"More interesting to me is the survival in this sequestered region of old English words and significations, altogether obsolete elsewhere," continued Bayne. "Now, when I asked the driver yesterday the name of a very symmetrical eminence in the midst of the ranges he said it had no name, that it was no mountain—it was just the 'moniment' of a little ridge, meaning the image, the simulacrum. This is Spenser's usage."

"Look here, Julian," said Briscoe, rising suddenly, all his wonted bluff self again, "if you fire off any more of your philologic wisdom at us I'll throw you over the cliff. We are skilled in the *use* of words—honest, straight talk—not their dissection. I want to get at something that we can all enjoy. Tune this violin and come and play some of those lovely old things that you and Gladys used to practise together."

"Yes, yes, indeed," exclaimed Mrs. Briscoe cordially, and, rising promptly, she approached the piano.

Briscoe also started toward the instrument, to open it for her. "Mrs. Royston and I will be a generous audience and applaud enthusiastically. But stop—what is that?"

He suddenly paused, the lid of the piano half lifted in his hands, the scattered sheet music falling in a rustling shower to the floor.

"What *is* that?" he reiterated, motionless and hearkening.

II.

A voice was calling from out the rising mists, calling again and again, hailing the house. Briscoe dropped the lid of the piano and strode to the door, followed by Bayne, the ladies standing irresolute on the hearthrug and gazing apprehensively after them.

The sudden changes incident to the mountain atmosphere were evidenced in the opaque density of the fog that had ensued on the crystalline clearness of the sunset. It hung like a curtain from the zenith to the depths of the valley, obscuring all the world. It had climbed the cliffs; it was shifting in and out among the pillars of the veranda; it even crossed the threshold as the door was opened, then shrank back ghostly-wise, dissolving at the touch of the warm home radiance. As the lamp-light flickered out, illuminating its pervasive pallor, the new-comer urged a very lame horse to the steps of the veranda. The two friends waiting within looked at each other in uncertainty as to their policy in admitting the stranger. Then as his rapid footfalls sounded on the veranda, and a stalwart figure appeared in the doorway, Briscoe tilted the shade of the lamp on the table to throw its glare full on the new-comer's face, and broke forth with an acclaim of recognition and welcome.

To be sure, he was but a casual acquaintance, and Briscoe's cordiality owed something of its fervor to his relief to find that the visitor was of no untoward antecedents and intentions. An old school-fellow he had been long ago in their distant city home, who chanced to be in the mountains on a flying trip—no belated summer sojourner, no pleasure-seeker, but concerned with business, and business of the grimmest monitions. A brisk, breezy presence he had, his cheeks tingling red from the burning of the

wind and sun and the speed of his ride. He was tall and active, thirty-five years of age perhaps, with a singularly keen eye and an air intimating much decision of character, of which he stood in need for he was a deputy collector of the revenue service, and in the midst of a dangerous moonshining raid his horse had gone dead lame.

"I hardly expected to find you still here at this season," he said to Briscoe, congratulating himself, "but I took the chances. You must lend me a horse."

Briscoe's instincts of hospitality were paramount, and he declared that he would not allow the new-comer to depart so summarily. He must stay and dine; he must stay the night; he must join the hunt that was planned for tomorrow—a first-rate gun was at his disposal.

"I'll get you back to Glaston without delay. I'll let you drive the dog-cart with Fairy-foot, the prettiest bit of horse-flesh that ever wore a shoe—trots to beat the band! You can hunt all day with Bayne and me, and a little before sunset you can start for Shaftesville, and she will whisk you there in an hour and a quarter, twenty miles. You needn't start till five o'clock to catch the seven-ten train, with lots of time to spare."

In spite of all denial, the telephone bell was presently jangling as Briscoe rang up the passenger-agent at the railroad depot in the little town of Shaftesville, twenty miles away.

"Twenty-six—yes, Central, I *did* say twenty-six!... Hello, Tucker, is that you?... See here—Mr. Frank Dean will be there with the dog-cart and Fairy-foot to-morrow evening to catch the seven-ten train for Glaston—leaves here about an hour by sun. Will you do me the favor to hire a responsible party there to bring the mare back?... Can't spare a man from here. Lost two of my dogs—yes, my fine, full-blooded hounds—you remember Damon and Pythias? Strayed off from the pack, and all hands and the cook have got to get out straightway and hunt them. Wolves—awfully afraid they will get the hounds. Outnumber them and pull them down—fierce at this season.... Yes, I hope so! You'll look out for Fairy-foot?... Thanks, awfully.... Yes, *he* would do—careful fellow! Tell him to drive slowly coming back. Dean will

race her down there at the top of her speed. (Hush up, Frank, *I* know what I am talking about.) Mr. Dean will be there all right. Thank you very much. Do as much for you some day. Goo'-by."

But Dean's protests were serious. His duties admitted of no trifling. He wanted no such superfine commodity as Fairy-foot, but a horse stout and sound he must have to-night and the favor of leaving his disabled steed in Briscoe's stable. He explained that his misfortune in laming the horse and the fog combined had separated him from the revenue posse just from a secluded cove, where his men had discovered and raided an illicit distillery in a cavern, cutting the copper still and worm to bits, demolishing the furnace and fermenters, the flake-stand and thumper, destroying considerable store of mash and beer and singlings, and seizing and making off with a barrel of the completed product. A fine and successful adventure it might have seemed, but there were no arrests. The moonshiners had fled the vicinity. For aught the officer had to show for it, the "wild-cat" was a spontaneous production of the soil. He made himself very merry over this phase of the affair, when seated at the prettily appointed dinner table of the bungalow, and declared that however the marshal might regard the matter, he could not call it a "water-haul."

The repast concluded, he insisted that he must needs be immediately in the saddle again. He scarcely stayed for a puff of an after-dinner cigar, and when he had bidden the ladies adieu both Bayne and Briscoe went with him to the stable, to assist in the selection of a horse suited to his needs. Little Archie ran after them, begging to be admitted to their company. Briscoe at once caught him up to his shoulder, and there he was perched, wisely overlooking the choice of an animal sound and fresh and strong as the three men made the tour from stall to stall, preceded by a brisk negro groom, swinging a lantern to show the points of each horse under discussion.

In three minutes the revenue officer, mounted once more, tramped out into the shivering mists and the black night. The damp fallen leaves deadened the sound of departing hoofs; the obscurities closed about him, and he vanished from the scene, leaving not a trace of his transitory presence.

Briscoe lingered in the stable, finding a jovial satisfaction in the delight of little Archie in the unaccustomed experience, for the child had the time of his life that melancholy sombre night in the solitudes of the great mountains. His stentorian shouts and laughter were as bluff as if he were ten years old, and as boisterous as if he were drunk besides. Briscoe had perched him on the back of a horse, where he feigned to ride at breakneck speed, and his cries of "Gee!" "Dullup!" "G'long!" rang out imperiously in the sad, murky atmosphere and echoed back, shrilly sweet, from the great crags. The stable lantern showed him thus gallantly mounted, against the purple and brown shadows of the background, his white linen frock clasped low by his red leather belt, his cherubic legs, with his short half hose and his red shoes, sticking stiffly out at an angle of forty-five degrees, his golden curls blowing high on his head, his face pink with joy and laughter. The light shone too in the big, astonished eyes of the fine animal he bestrode, now and then turning his head inquisitively toward Briscoe—who stood close by with a cautious grasp on the skirts of the little boy—as if wondering to feel the clutch of the infantile hands on his mane and the tempestuous beat of the little feet as Archie cried out his urgency to speed.

Archie would not willingly have relinquished this joy till dawn, and the problem how to get him peaceably off the horse became critical. He had repeatedly declined to dismount, when at length a lucky inspiration visited Briscoe. The amiable host called for an ear of corn, and with this he lured the little horseman to descend, in order to feed a "poor pig" represented as in the last stages of famine and dependent solely on the ministrations of the small guest. Here renewed delights expanded, for the "poor pig" became lively and almost "gamesome," being greatly astonished by the light and men and the repast at this hour of the night. As he was one of those gormands who decline no good thing, he affably accepted Archie's offering, so graciously indeed that the little fellow called for another ear of corn more amply to relieve the porcine distresses, the detail of which had much appealed to his tender heart. It seemed as if the choice of the good Mr. Briscoe lay between the fiction of riding an endless race or playing the Samaritan to the afflicted pig, when in the midst of Archie's noisy beatitudes sleep fell upon him unaware, like a thief in the night. As he waited for the groom to reappear with the second relay of refreshments,

Briscoe felt the tense little body in his clasp grow limp and collapse; the eager head with its long golden curls drooped down on his shoulder; the shout, already projected on the air, quavered and failed midway, giving place to a deep-drawn sigh, and young Royston was fairly eclipsed for the night, translated doubtless to an unexplored land of dreams where horses and pigs and revenue officers and mountains ran riot together "in much admired disorder." Briscoe bore him tenderly in his arms to the house, and, after transferring him to his nurse, rejoined with Bayne the ladies in the hall.

Here they found a change of sentiment prevailing. Although failing in no observance of courtesy, Mrs. Briscoe had been a little less than complaisant toward the departed guest. This had been vaguely perceptible to Briscoe at the time, but now she gency constrained him."

"I don't see why you should have asked him to dine," she said to her husband. "He was difficult to persuade, and only your urgency constrained him."

Her face was uncharacteristically petulant and anxious as she stood on the broad hearth at one side of the massive mantelpiece, one hand lifted to the high shelf; her red cloth gown with the amber-tinted gleams of the lines of otter fur showed richly in the blended light of fire and lamp. Her eyes seemed to shrink from the window, at which nevertheless she glanced ever and anon.

"I delight in the solitude here, and I have never felt afraid, but I think that since this disastrous raid that revenue officer is in danger in this region from the moonshiners, and that his presence at our house will bring enmity on us. It really makes me apprehensive. It was not prudent to entertain him, and certainly not at all necessary—it was almost against his will, in fact."

"Well, well, he is gone now," returned Briscoe easily, lifting the lid of the piano and beginning to play a favorite air. But she would not quit the subject.

"While you three were at the stable I thought I heard a step on the veranda—you need not laugh—Lillian heard it as well as I. Then, when you were so long coming back, I went upstairs to get a little shawl to send out to you to put over Archie as you came across the yard—the mists are so dank—and I saw—I am *sure* I saw—just for a minute—a light flicker from the hotel across the ravine."

Briscoe, his hands crashing out involuntarily a discordant chord, looked over his shoulder with widening eyes. "Why, Gladys, there is not a soul in the hotel now!"

"That is why the light there seemed so strange."

"Besides, you know, you *couldn't* have seen a light for the mists."

"The mists were shifting; they rose and then closed in again. Ask Lillian—she happened to be standing at the window there, and she said she saw the stars for a few moments."

"*Now, now, now!*" exclaimed Briscoe remonstrantly, rising and coming toward the hearth. "You two are trying to get up a panic, which means that this delicious season in the mountains is at an end for us, and we must go back to town. Why can't you understand that Mrs. Royston saw the stars and perhaps a glimpse of the moon, and that then you both saw the glimmer of their reflection on the glass of the windows at the vacant hotel. Is there anything wonderful in that? I appeal to Julian."

"I don't know anything about the conditions here, but certainly that explanation sounds very plausible. As to the step on the veranda, Ned and I can take our revolvers and ascertain if anyone is prowling about."

The proposition appealed to Mrs. Briscoe, and she was grateful for the suggestion, since it served, however illogically, to soothe her nerves. She looked at Bayne very kindly when he came in with his host, from the dripping densities of the fog, his face shining like marble with the pervasive moisture, his pistol in his hand, declaring that there was absolutely nothing astir. But indeed there was more than kind consideration in Mrs. Briscoe's

look; there was question, speculation, an accession of interest, and he was quick to note an obvious, though indefinable, change in Mrs. Royston's eyes as they rested upon him. She had spent the greater portion of the evening tête-à-tête with her hostess, the men being with the horses. He was suddenly convinced that meantime he had been the theme of conversation between the two, and—the thought appalled him!—Mrs. Briscoe had persuaded her friend that to see again the woman who had enthralled him of yore was the lure that had brought him so unexpectedly to this solitude of the mountains. His object was a matter of business, they had been told, to be sure, but "business" is an elastic and comprehensive term, and in fact, in view of the convenience of mail facilities, it might well cloak a subterfuge. Naturally, the men had not divulged to the women the nature of the business, more especially since it concerned the qualifications of a prospective attorney-in-fact. This interpretation of his stay Bayne had not foreseen for one moment. His whole being revolted against the assumption—that he should languish again at the feet of this traitress; that he should open once more his heart to be the target of her poisonous arrows; that he should drag his pride, his honest self-respect, in the dust of humiliation! How could they be so dull, so dense, as to harbor such a folly? The thought stung him with an actual venom; it would not let him sleep; and when toward dawn he fell into a troubled stupor, half waking, half dreaming, the torpid state was so pervaded with her image, the sound of her voice, that he wrested himself from it with a conscious wrench and rose betimes, doubtful if, in the face of this preposterous persuasion, he could so command his resolution as to continue his stay as he had planned.

III.

On descending the stairs, Bayne found the fire newly alight in the hall, burning with that spare, clear brilliancy that the recent removal of ashes imparts to a wood fire. All the world was still beclouded with mists, and the windows and doors looked forth on a blank white nullity—as inexpressive, as enigmatical, as the unwritten page of the unformulated future itself. The present seemed eliminated; he stood as it were in the atmosphere of other days. But whither had blown the incense of that happy time? The lights on the shrine had dwindled to extinction! What had befallen his strong young hopes, his faith, his inspiration, that they had exhaled and left the air vapid and listless? He was conscious that he was no more the man who used to await her coming, expectant, his eyes on the door. He had now scarcely a pulse in common with that ardent young identity he remembered as himself—his convictions of the nobler endowments of human nature; his candid unreserve with his fellows; his aspirations toward a fair and worthy future; his docile, sweet, almost humble content with such share of the good things of this life as had been vouchsafed him; his strength, as "with the strength of ten," to labor night and day with the impetus of his sanctified impulses; but, above all, his love, that had consecrated his life, his love for this woman who he believed—poor young fool!—loved him. How could five years work such change? World-worn he was and a-weary, casuistic, cautious, successful in a sort as the logical result of the exercise of sound commercial principles and more than fair abilities, but caring less and less for success since its possession had only the inherent values of gain and was hallowed by no sweet and holy expectation of bestowal. He could have wept for the metamorphosis! Whatever he might yet become, he could never be again this self. This bright, full-pulsed identity was dead—dead for

all time! Icarus-like, he had fallen midway in a flight that under other conditions might have been long and strong and sustained, and he bemoaned his broken wings.

So much depression of spirit was in his attitude, even listless despair, as he stood in the vacant apartment, looking down at the silver bowl on the table, filled with white roses and galax leaves, freshly gathered; so much of the thought in his mind was expressed in his face, distinct and definite in the firelight, despite the clouds at the dim window, that Lillian Royston, descending the stair unperceived, read in its lineaments an illuminated text of the past.

"Oh, Julian, Julian, I was cruel to you—I was cruel to you!" she cried out impulsively in a poignant voice.

He started violently at the sound, coming back indeed through the years. He looked up at her, seeing as in a dream her slim figure clad in a gray cloth gown, on the landing of the stair. Her face was soft and young and wistful; her aspect had conquered the years; she was again the girl he knew of old, whom he had fancied he had loved, crying out in the constraining impetus of a genuine emotion, "I was cruel to you! I was cruel to you!"

The next moment he was all himself of to-day—cool, confident, serene, with that suggestion of dash and vigor that characterized his movements. "Why, don't mention it, I beg," he said with a quiet laugh and his smooth, incidental society manner, as if it were indeed a matter of trifling consequence. Then, "I am sure neither of us has anything to regret." The last sentence he thought a bit enigmatical, and he said to Briscoe afterward that, although strictly applicable, he did not quite know what he had meant by it. For the door had opened suddenly, and his host had inopportunately entered at the instant. Although Briscoe had affected to notice nothing, he heard the final sentence, and he was disposed to berate Bayne when the awkward breakfast was concluded and the party had scattered.

"You were mighty sarcastic, sure," he observed to Bayne over their cigars in the veranda, for with all the world submerged in the invisibilities of the

mists the day's hunt was necessarily called off.

"Why, I was rattled," Bayne declared. "I did not expect to hear her upbraid herself."

"She is so sensitive," said Briscoe compassionately. He had heard from his wife the interpretation that she had placed on Bayne's sudden visit to this secluded spot, and though he well knew its falsity, he could but sympathize with her hope. "Lillian is very sensitive."

"I think it is up to me to be sensitive on that subject; but her sensitiveness at this late day is what gave *me* the cold shivers."

Briscoe eyed him sternly, the expression incongruous with the habitual aspect of his broad, jovial, florid face. Their features were visible to each other, though now and then the fog would shift between the rustic chairs in which they sat. Julian Bayne laughed. How easily even now did this woman convert every casual acquaintance into an eager partisan!

"If she is growing sensitive for her cruelties to me, I am apprehensive that it may be in her mind to make amends. I should keep away from her—discretion being the better part of valor."

Briscoe drew back with an air of averse distaste. He spoke guardedly, however, remembering that he was in his own house and fearful of going too far; yet he could not let this pass. "You surprise me, Julian. I never imagined *you* could say anything so—so—caddish."

"Why don't you say 'currish' and be done with it?" Julian's eyes flashed fire. His face had flushed deeply red. Every muscle was tense, alert. Then he checked himself hastily. He turned his cigar in his hand and looked intently at it as he reflected that this woman had already done harm enough in his life. He would not allow her to inflict the further and irreparable injury of coming between him and the friend he loved as a brother. He slipped quietly into his former easy attitude before he resumed, smiling: "Currish, indeed it may be, but that is exactly the kind of old dog Tray I am."

"You will please take notice that *I* have said nothing of the sort," Briscoe stiffly rejoined. "But I think and I do say that it is a preposterous instance of coxcombry to subject such a woman as Mrs. Royston—because of a generous moment of self-reproach for a cruel and selfish deed—to the imputation of inviting advances from a man who coyly plans evasion and flight—and she scarcely two years a widow."

"Time cuts no ice in the matter," Bayne forced himself to continue the discussion. "She has certainly shown the manes of Archibald Royston the conventional respect."

"She made an awful mistake, we all know that! And although I realized that it was on account of that rubbishy little quarrel you and she got up at the last moment, I felt for her, because to people generally her choice was subject to the imputation of being wholly one of interest. They were so dissimilar in taste, so uncongenial; and I really think *he* did not love her!"

"*He* had no other motive, at all events."

"Oh, of course he had a certain preference for her; and it was the sort of triumph that such a man would relish—to carry her off from you at the last moment. I always recognized *his* influence in the sensational elements of that dénouement. He liked her after a fashion—to preside in a princess-like style in his big house, to illustrate to advantage his florid expenditure of money, to sparkle with wit and diamonds at the head of his table—a fine surface for decoration she has! But Royston couldn't love—couldn't really care for anything but himself—a man of that temperament."

Bayne rose; he had reached the limit of his endurance; he could maintain his tutored indifference, but he would not seek to analyze the event anew or to adjust himself to the differentiations of sentiment that Briscoe seemed disposed to expect him to canvass.

The encroachments of the surging seas of mist had reduced the limits of the world to the interior of the bungalow, and the myriad interests and peoples of civilization to the little household circle. The day in the pervasive constraint that hampered their relations wore slowly away. Under

the circumstances, even the resources of bridge were scarcely to be essayed. Bayne lounged for hours with a book in a swing on the veranda. Briscoe, his hands in his pockets, his hat on the back of his head, his cigar cocked between his teeth—house-bound, he smoked a prodigious number of them for sheer occupation—strolled aimlessly in and out, now in the stables, now listening and commenting as Gladys at the piano played the music of his choice. Lillian had a score of letters to write. Her mind, however, scarcely followed her pen as she sat in the little library that opened from the big, cheery hall. Her thoughts were with all that had betided in the past and what might have been. She canvassed anew, as often heretofore, her strange infatuation, like a veritable aberration, so soon she had ceased to love her husband, to make the signal and significant discovery that he was naught to love. She had always had a sort of enthusiasm for the truth in the abstract—not so much as a moral endowment, but a supreme fixity, the one immutable value, superior to vicissitudes. She could not weep for a lie; she could only wonder how it should ever have masqueraded as the holy verities.

She would not rehearse her husband's faults, and the great disaster of the revelation of his true character that made the few short years she had passed with him stretch out in retrospect like a long and miserable life. It was over now, and her friends could not disguise their estimation of the end as a blessed release. But peace had not come with it. She was not impervious to remorse, regret, humiliation, for her course. The sight of Bayne, the sound of his voice, had poignantly revived the past, and if she had suffered woeful straits from wanton cruelty, she could not deny to herself that she had been consciously, carelessly, and causelessly cruel. In withdrawing herself to the library she had thwarted certain feints of Mrs. Briscoe's designed to throw them together in her hope of their reconciliation. Lillian had become very definitely aware that this result was far alien to any expectation on Bayne's part, and her cheeks burned with humiliation that she should for one moment, with flattered vanity and a strange thrill about her heart, have inclined to Mrs. Briscoe's fantastic conviction as to the motive of his journey hither. Indeed, within his view she could now scarcely maintain her poise and the incidental unconscious mien that the conventions of the situation demanded. She welcomed the movement in the folds of the

curtaining mist that betokened a prospect of lifting and liberating the house-bound coterie. Presently, as she wrote, she heard the stir of the wind in the far reaches of the valley. The dense white veil that swung from the zenith became suddenly pervaded with vague shivers; then tenuous, gauzy pennants were detached, floating away in great lengths; the sun struck through from a dazzling focus in a broad, rayonnant, fibrous emblazonment of valley and range, and as she rose and went to the window to note the weather signs she could not resist the lure of escape. She had struggled all day with an eager desire to be out of the house, removed from the constantly recurring chances of meeting Bayne, quit of the sight of him. She instantly caught up her broad gray hat with its flaunting red and gray ostrich plumes and called out to Mrs. Briscoe a suggestion that they should repair to the vacant hotel for a tramp on its piazzas, for it was the habit of the two ladies in rainy or misty weather to utilize these long, sheltered stretches for exercise, and many an hour they walked, on dreary days, in these deserted precincts.

"I'll overtake you," was Mrs. Briscoe's rejoinder, and until then Lillian had not noticed the employ of her hostess. The gardener was engaged in the removal of the more delicate ornamental growths about the porte-cochère and parterre to the shelter of the flower-pit, for bright chill weather and killing frosts would ensue on the dispersal of the mists. Mrs. Briscoe herself was intent on withdrawing certain hardier potted plants merely from the verge of the veranda to a wire-stand well under the roof. Briscoe was at the gun-rack in the hall, restoring to its place the favorite rifle he had intended to use to-day. He could not refrain from testing its perfect mechanism, and at the first sharp crack of the hammer, liberated by a tentative pull on the trigger, little Archie sprang up from his play on the hearth-rug, where he was harnessing a toy horse to Mrs. Briscoe's work-basket by long shreds of her zephyr, and ran clamoring for permission to hold the gun.

Mrs. Briscoe saw him through the open door and instantly protested: "Come away, Archie!" Then to her husband, "You men are always killing somebody with an unloaded gun. Come away, Archie!"

"Nonsense, Gladys!" Briscoe remonstrated. "Let the child see the rifle. There is not a shell in the whole rack."

She noticed her husband not at all. "Come away, Archie," she besought the little man, staring spellbound with his big blue eyes. He had scant care for the authority of "Gad-ish," as Gladys loved for him lispingly to call her. Only when she began to plead that she had no one to help her with her flowers, to carry the pots for her, did he wrench himself from the contemplation of the flashing steel mechanism that had for him such wonderful fascination and lend his flaccid baby muscles to the fiction of help. He began zealously to toil to and fro, carrying the smallest pots wherever she bade him. Her own interest in the occupation was enhanced by the colloquy that ensued whenever she passed her small guest. "Hello, Archie!" she would call for the sake of hearing the saucy, jocose response: "Oh, oo Gad-ish!" as the juvenile convoy fared along with his small cargo.

Lillian felt that she could not wait. Gladys might come at her leisure. She burst impulsively out of the door, throwing on her hat as she went, albeit wincing that she must needs pass Bayne at close quarters as he still lounged in the veranda swing. He looked up at the sound of the swift step and the sudden stir, and for one instant their eyes met—an inscrutable look, fraught with an undivined meaning. For their lives, neither could have translated its deep intendment. She said no word, and he merely lifted his hat ceremoniously and once more bent his eyes on his book.

She was like a thing long imprisoned, liberated by some happy chance. Her feet seemed scarcely to touch the ground as she sped along down the ravine, then across the rustic bridge that spanned the chasm through which rushed the tumultuous mountain stream foaming among the boulders deep in its depths, and breaking ever and anon into crystal cascades. On the opposite side she soon struck into the mountain road that had been graded and tamed and improved by the hotel management into the aspect of a sophisticated driveway, as it swept up to the great flight of steps at the main entrance of the big white building.

IV.

The vacant hotel, bereft of the pleasure-seeking crowds whose presence seemed the essential condition of its existence, looked strangely sinister in the silent golden splendor of the clearing afternoon, with its tiers of deserted piazzas, its band-stand mute and empty, the observatory perched above the precipice, seemingly so precarious as to have all the effect of teetering in the wind.

Languid now, preoccupied, Lillian ascended the long flight of steps to the piazza and paused to look out at the great spread of the landscape, wreathed in flying mists and of a different aspect from this increase of elevation. She had begun to stroll aimlessly along in the possession of the seclusion she craved, when she suddenly noted the fact that the front door stood a trifle ajar. She paused with a repugnant sense of a lapse of caution. Then she reflected that bolts and locks could add but little security in a desert solitude like this, where a marauder might work his will from September to June with no witnesses but the clouds and winds to hinder. She had forgotten the insistent declaration of Gladys that she had seen a light flicker from these blank windows the preceding night. Indeed, even at the time she had accounted it but the hysteric adjunct of their panic in the illusion of a stealthy step on the veranda of the bungalow. She was animated only by the simplest impulse of idle curiosity when she laid her hand on the bolt. The big door swung open at once on well-oiled hinges, and she found herself in the spacious hotel office, on one side of which were the clerk's desk and the office clock, looking queerly disconsolate without the loitering groups of humanity wont to congregate about the counter. The day glared garishly through the great skylight on the dusty interior; the big windows held expansive sections of mountain landscape, bronze, blue, and scarlet, like

vivid paintings in frames. A staircase of fine and stately proportions descended from the lofty reach of the upper story, dividing into two sweeping flights from the landing. A massive mantel-piece was on the opposite side, with an immense fireplace, and heavy brass andirons and fender. She was a stranger to the interior of the place, for her visit to the locality began after the closing of the hotel, but though she looked about with a vague sub-current of interest as she sauntered through the building, glad of any pretext to prolong her absence from the bungalow, her mind was really introverted.

She felt that she could never forgive herself her part in the scene of the morning, that wild, impulsive cry that voiced at once confession and a plea for pardon. At the sheer recollection of his rejoinder she tingled and winced as from the touch of fire. "Don't mention it," quotha. And they neither had aught to regret—he was sure of that, forsooth! Regret! It was only another name for her life. There was nothing but regret, night and day, sleeping and waking. But oh, how could she have said the words! What was it to him? He cared naught for her now and her cruelties—an old, old story to him, to be sure, told to the end, the pages shut. And she must needs seem to seek to turn the leaf anew! What else indeed could he think? Surely she had been beguiled by Gladys' vicarious sentimentality as to the lure of his coming, even while she had flouted the possibility.

Suddenly—a sound! It broke upon her absorption so abruptly that in an instant every muscle was adjusted for flight, though she paused and looked fearfully over her shoulder. Only an echo, she told her plunging heart—an echo of her own footfalls in the resonant emptiness of the deserted place. She had wandered down a long corridor, from which doors opened only on one side into the big bare dining-room, the chairs all ranged on the tops of the many round tables, standing at equidistant intervals. An echo—doubtless that was all. She upbraided herself to have sustained so sudden and causeless a fright. Her heart was beating like a trip-hammer. It seemed to fill all the building with the wild iteration of its pulsations. As she sought to reassure herself, she remembered that in a cross-hall she had noted the telephone, the wire still intact, as she knew, for the connection of the hotel was with that of the bungalow on a party-line of the exchange at

Shaftesville, twenty miles away. If she should be really frightened, she could in one moment call up the house across the ravine.

The next instant she was almost palsied with recurrent terror: the footfall, stealthy, shuffling, weighty, sounded again. It was never the echo of her own deft, light step! A distinct, sibilant whisper suddenly hissed with warning throughout the place, and as she turned with the instinct of flight she caught a glimpse in the darkling mirror across the dining-room of a fugitive speeding figure, then another, and still another, all frantically, noiselessly fleeing—why or whom, she could not descry, she did not try to discriminate.

Without a word or a sound—her voice had deserted her—she turned precipitately and fled in the opposite direction through the corridor, down a cross-hall, and burst out of a side door upon a porch that was the nearest outlet from the building. This porch was less intended as an exit, however, than an outlook. True, there were steps that led down at one side to the ground, but the descent thence was so steep, so rugged and impracticable, that obviously no scheme of utility had prompted its construction. Jagged outcropping ledges, a chaos of scattered boulders, now and again a precipitous verge showing a vertical section of the denuded strata, all formed a slant so precarious and steep that with the sharp sound of the door, closing on its spring, Bayne looked up from his seat in the swing on the veranda across the ravine in blank amazement to see her there essaying the descent, as if in preference to an exit by the safe and easy method of the winding road at the front of the edifice.

Lillian, still with all the impetus of terror in her muscles, her breath short and fluttering, her eyes distended and unseeing, plunged wildly down the rugged, craggy declivity, painfully aware of his wonder as he gazed from the distance, prefiguring, too, his disapproval. Perhaps this had its unnerving influence, though swift and surefooted ordinarily, her ankle turned amidst the gravel shifting beneath her flying steps, and she sank suddenly to the ground, slipped down a precipitous incline, caught herself, half crouching against a gigantic boulder.

There was no recourse for Bayne. No one else was within view. Though between his teeth he muttered his distaste for the devoir that should bring him to her side, and the solicitude he was constrained to show, he leaped from the veranda and started down the ravine to her assistance, to "make his manners," as he said sarcastically to himself. But when he had come to the little rustic bridge and, glancing up, saw that she had not yet risen, he began to run, and before he reached her, climbing the ascent with athletic agility, he called out to ask if the fall had hurt her.

"I don't know," she faltered, and when he was at her side she looked up at him with a pale and quivering face.

"Try to stand," he urged, as he leaned down and took her arm. "Let me lift you. There! How did it happen?"

"My ankle turned," she replied, rising with effort and standing unsteadily, despite his support.

"Does it pain you?" he queried with polite solicitude, looking down at the dainty low-cut gray shoe. "Bear your weight on it."

She essayed the experiment. "No," she barely whispered; "it is all right."

He fixed upon her a look of questioning amazement, as she still held trembling to his arm. "What is the matter, then?"

"There is somebody in the hotel."

He gave a hasty glance upward from under the stiff brim of his hat. "Hardly likely—but I'll examine and see."

He was about to start off when she tightened her clutch on his arm.

"No, no," she pleaded. "Don't leave me! I don't know why—but I can't stand. I can't walk."

"Did you really hear something?" he asked sceptically.

The light note of satire stung her pride. "Oh, I saw them, and they saw me," she protested. "I saw three men, and they all ran as I came into the dining-room."

He broke into a short laugh. "Got them on the run, did you? Not very formidable they were, you must admit. Shadows, I fancy. There is a large mirror on the blank side of the dining-room opposite the door. Don't you suppose it possible that you saw only your own moving reflection?"

Her pride was roused. The pulse of anger began to tint her face with a dull crimson. "I should imagine I could distinguish my own reflection from three men—rough-looking men with slouched hats, all running and looking backward over their shoulders."

It had been a conscious effort to nerve herself for this protest in defence of her poise and capacity, but at the mere recollection of the scene she had conjured up anew she fell to trembling, looking very pale again and as if she might faint.

"Well, it is no great matter, as the intruders were bluffed off," he said suavely, putting the question aside. "I will send one of Briscoe's grooms to investigate the premises. But now, suppose we go to the piazza, and let you rest there and recover from the strain to your ankle." Once more he glanced down at the dainty shoe with its high French heel. "I don't wonder it turned. A proper shoe for mountaineering!" That rancor against a frivolity of feminine fashion that holds a menace to health or safety, so characteristic of the utilitarian masculine mind, was a touch of his old individuality, and it made him seem to her more like himself of yore. The resemblance did not tend to confirm her composure, and she was almost piteous as she protested that she could not, she would not, go near the hotel again.

"Why, you need not, then," he reassured her abruptly, waiving the possibility of insistence, as much as to say it was no concern of his.

"I might walk to the observatory," she suggested, "and—and—I need not detain you then."

"In view of three bandits in slouched hats, although all on the back-track—and although I am convinced that it was but their astral apparitions with which you were favored—I will venture to intrude my society until I can see you to the Briscoe bungalow."

"Oh, there's no intrusion," she rejoined petulantly. "You must know I couldn't mean that!"

"I never know what you mean, I am sure!" he said with that tense note of satire. Then he paused with a vague wonder at himself thus to trench on the emotional phases between them that must be buried forever. Remembering her own allusion that morning, her cry of regret and appeal, he was apprehensive of some renewal of the topic that he had thus invited, and he began to move hastily down the slope, supporting her with care, but with a certain urgency too. He was obviously eager to terminate the conversational opportunity, and when it was requisite to pause to rest he improved the respite by beckoning to one of the stablemen passing near, bound toward a pasture in the rear of the hotel with a halter in his hand, and ordering him to investigate the building to discover any signs of intrusion.

The man hearkened in patent surprise, then asked if he might defer the commission till he had harnessed Fairy-foot, Mr. Briscoe having ordered out the dog-cart and his favorite mare.

"Plenty of time, plenty of time! We can't hope to overtake them, with the start they have already. Just see if there are any signs of intrusion into the place and report. And now, Mrs. Royston, shall we move on?"

The observatory was a structure strong but singularly light and airy of effect, poised on the brink of the mountain, above a slant so steep as to be precipitous indeed, terminating in a sheer vertical descent, after affording such foothold as the supporting timbers required. A great landscape it overlooked of wooded range and valley in autumnal tints and burnished sunset glow, but this made only scant impression on the minds of both, looking out with preoccupied, unseeing eyes. The balustrade around the four sides formed the back of a bench, and on this seat Lillian sank down,

still feeble and fluttering, painfully agitated, acutely aware that, as she had no obvious physical hurt, the nervous shock she had sustained might scarcely suffice to account for her persistent claim on his aid and attention. Certainly he was warranted in thinking anything, all he would, since her wild, impulsive appeal in the early morning. How had it chanced, that cry from her heart! It was a triumph in some sort for him, unsought, complete, yet so pitiable, so mean, that he did not even care for it. His face was not triumphant; rather, listless, anxious, careworn. He was gazing down toward the bungalow where Briscoe stood at the head of the flight of the veranda steps, drawing on his driving gloves, while Fairy-foot, the fine mare, now resplendent in the least restrictions of harness that might control her bounding spirits and splendid strength, stood between the shafts of the dog-cart on the drive, a groom at her head, holding the bit.

Mrs. Briscoe had approached, and they discerned from her husband's gestures that he was inviting her to accompany him. They could not hear the words at this distance, but presently Briscoe, the most transparently candid of men, suddenly whirled and glanced up toward the observatory across the ravine, showing plainly that the two had become the subject of conversation.

Lillian was all unstrung, her powers of self-control annulled. She broke out with as unreasoning a sense of injury as a sensitive child might have felt. "They are talking about us!" she wailed.

"They are not the first!" Bayne could not restrain his curt, bitter laugh, the unconscious humor of the suggestion was so patent, albeit the edge cut deep.

"And how do you suppose that fact makes *me* feel?" she asked, looking up at him, her eyes full of tears, her heart swelling, her face scarlet.

Bayne would have given much to avoid this moment. But now that the discussion was upon him, he said to himself that he would not traffic with the insincerities, he would not be recreant to his own identity. He would not

fawn, and bow, and play the smug squire of dames, full of specious flatteries, and kiss the hand that smote him.

"And how do you suppose that *I* should think you could feel at all?" he retorted sternly.

It was so unlike him, the rebuke—he had so ardently worshipped her, even her faults, which were like shining endowments in his estimation—that for the first time she felt the full poignancy of his alienation. He was no longer hers, loving, regretting, always yearning after her, the unattainable! Had he not said only to-day that neither of them had aught to regret? Was this what he had really felt through the long years of their separation? Was it she who had forfeited him, rather than he who had lost her? She sat quite still, almost stunned by the realization, a vague sense of bereavement upon her. A woman's faith in the constancy of a lover is a robust endowment! It withstands change and time and many a coercive intimation.

"I suppose," she said at length, quite humbly, "it is natural that you should say that to me."

"You asked for it," he replied tersely.

Then they were both silent for a space, looking down at the group on the veranda of the bungalow.

"May I have the honor and pleasure of your company, madam?" Briscoe had asked his wife with fantastic formality.

"You may *not*!" she rejoined with a gay laugh.

"And why not?"

"I declare, Ned, you live so much up here in the wilderness, with your bears and deer and catamounts and mountaineers, that you are likely to forget all the *bienséance* you ever knew. Don't you perceive that my duties as chaperon to those lovers should lie nearest my heart?"

Then it was that he turned and cast that comprehending glance at the two in the distant observatory. Knowing how far from Bayne's mind was the emotion, the intention, she ascribed to him, that she would fain foster, his face grew rueful and overcast. He shook his head with disconsolate rebuke. "Oh, you woman, you!"

But the reproach did not strike home. Mrs. Briscoe was quite satisfied to be a woman, and was avowedly seeking to add to the normal subtleties of this state the special craft of a matchmaker.

Briscoe desired to avoid being drawn into any confession of his knowledge of Bayne's attitude of mind, and, aware of his own lack of diplomacy, sheered off precipitately from the subject. He turned, beaming anew, to the little boy who was looking on, cherubically roseate, at the sleek mare and the smart groom at her bit.

"Then, Archibald Royston, Esquire, may I hope that *you* will favor me?"

Archibald Royston, Esquire, suddenly apprehending in the midst of his absorption the nature of the invitation, gave two elastic bounces straight up and down expressive of supreme ecstasy; then, his arms outstretched, he began to run wildly up and down the veranda, looking in at the doors and windows as he passed, seeking his mother and her permission.

"Oh!" cried Lillian, springing to her feet as she watched the dumb-show at the distance. "They want Archie to go to drive. Oh, how can I make them hear me? I am sure Ned will not take him without permission."

She waved her hand, but the distance was obviously too great for the signal to be understood, and Briscoe's attitude was doubtful and perplexed. There was no time to be lost, for it was growing late, and a postponement, as far as Archie was concerned, seemed inevitable.

"Oh, the poor little fellow will be so disappointed! The mare will be off before I can make them understand."

"Wait," said Bayne authoritatively. He sprang upon the bench, and in this commanding position placed both hands megaphone-like to his lips, and as Archie came running along the veranda again, having descried his mother in the distance, and with outstretched arms bleating forth his eager, unheard appeal, Bayne shouted, his voice clear as a trumpet, "Yes, you *may go!*"

Not until he was once more on the floor of the observatory did he realize the form of the permission, and what relish its assumption of authority must give the matchmaking Mrs. Briscoe. Apparently, it did not impress Lillian as they stood together and she smilingly watched the group at the bungalow, when Archie was swung to a seat in the dog-cart beside his host. It seemed for a moment that they were off, but Mrs. Briscoe, with womanly precaution, bethought herself to throw a wrap into the vehicle. Throughout the day the close curtaining mists had resisted all stir of air, and the temperature had been almost sultry. Since the lifting of the vapors, the currents of the atmosphere were flowing freely once more, and the crystal clarity that succeeded was pervaded by an increasing chilliness. Before nightfall it would be quite cold, and doubtless the smart little red coat, gay with its Persian embroideries, would be brought into requisition.

For many a month afterward, whenever Lillian closed her eyes, she saw that little red coat. Shutting out the light, the world, brought neither rest nor darkness; instead, the long flaring vistas of gold and russet foliage and gray crags and flaming sunset remained indelible, and amidst it all one vivid point of scarlet hue as the little red coat was tossed through the air like a red leaf flying in the wind.

Now, as all unprescient she watched the group, she thought again they were gone. But no! Fairy-foot was a handful, even for so capital a whip as Briscoe. He obviously considered that the boy would be more secure stowed on the floor of the vehicle, half under the soft rug, and braced by the firm foot planted on either side against the dash-board.

"How considerate!" the watching mother thought with a glow of gratitude, noting the caution.

Suddenly the groom leaped aside; the splendid mare sprang forward; there was a whirl of wheels, a whorl of rays as the gleaming spokes caught the sunshine, and they were gone indeed!

"Oh!" cried Mrs. Royston, her eyes bright and soft with tenderness, "what a delight for Archie! He fairly adores to go with Ned. He owes it to you this time. You always took little things so much to heart."

"And great ones, too, to my sorrow," he said.

Her face changed. She was trembling once more on the brink of tears. She looked up at him with earnest appeal. "I wish, Julian, that we could forget the past."

"I do not," he returned, stern and grave, gazing far away over the landscape.

"No," she cried in a sudden transport of painful emotion; "you hold it against me like a grudge—a grudge that you despise too much to wreak vengeance for its sake. The past will always live in your memory—you hold it like a sword to my throat. You know that I shall always feel the torture of its edge, but in your magnanimity"—with sarcastic emphasis—"you forbear to thrust in the murderous blade."

"Good God, Lillian!" exclaimed Bayne, losing his balance altogether at the accusation. "How have I arrogated magnanimity, or anything else? I assume nothing! I have sought to efface myself while here, as far as might be. For the sake of all concerned—you, the Briscoes, *les convenances*, myself—I could not run away at the sight of you, like a whipped hound! But I perceive my error. I will get out of this forthwith. Heaven knows it has been anything but a pleasure!"

"Don't let me stand between you and your friends," she sobbed, weeping now in the reaction of sentiment. "Don't let me drive you away."

"Why not?" He sought relief from the pressure of the circumstances by affecting a lighter tone. "By your own account, you have stampeded three

men this afternoon. I shall be the fourth! The fugitives are counting up like Falstaff's 'rogues in buckram.' Are you ready to go now? We are leaving Mrs. Briscoe alone."

He did not offer to assist her to rise. Somehow, he could resist aught, all, save the touch of that little hand. It brought back to him as nothing else the girl he had loved, and who had loved him. Oh, he was sure of it once! This woman was a changeling in some mystic sort—the same in aspect, yet how alien to his ideal of yore!

She did not seem to mark the lapse of courtesy. She sat still, with her broad gray hat tilted back on her head, a soft and harmonious contrast with her golden hair and roseate face. Her ungloved hands were clasped in her lap, her eyes were melancholy, meditative, fixed on the distant mountains. "I wish we might reach some mutual calm thought of the past, like the tranquil unimpassioned brightness of the close of this troubled, threatening day. We don't care now for the clouds that overcast the morning. To attain some quiet sentiment of forgiveness——"

"I ask no pardon," he said curtly.

"Oh!"—she gazed up at him with all her soul in her eyes—"you have no need!"

Had she been warned in a dream, she could have compassed no surer method of reducing his pride than this self-abnegating generosity. But suddenly an alien sound impinged on the quietude. The sharp note of a rifle shattered the silence, the fragmentary echoes clamoring back from the rocks like a volley of musketry.

"How startling that was!" she exclaimed, turning to look in the opposite direction over the placid valley commanded by the observatory, with the purple mountains encircling the horizon. "How this clear air carries the sound!"

"That was not distant," Bayne observed. "Damp air is a better conductor of sound than a clear atmosphere."

"It was like blasting," she submitted.

"It was a rifle-shot," he discriminated. "A still-hunter, probably. The deer come down from the coverts toward evening to drink. Some rock may have fallen along the river-bank, dislodged by the concussion."

A sense of melancholy was in the air, gathering with the gathering darkness. The light was fading out of the west, and the early autumnal dusk was at hand. Lillian was sensible of an accession of lassitude, a realization of defeat in a cause which she felt now it was futile to have essayed. Why should he forgive? How was reparation possible? She could not call back the Past—she could not assuage griefs that time had worn out long ago, searing over the wounds. She was quite silent as she rose and together they took their way down toward the bungalow. While she flagged now and again, she walked without assistance, though he kept close and ready at her side.

Gladys watched their progress expectantly, but her face fell as they drew near and she could discern their listless expression and manner. She did not await their arrival, but turned, disappointed, within. It was already time to dress for dinner, the ladies habitually observing this formality, although Briscoe often went in knickerbockers till midnight. Lillian paused on the veranda and gazed down the road, winding away into the dusky red flare of the fading west, for the drive must needs be short in this season of early nightfall. There was no sign of approach along its smooth and shadowy curves, and at the end of the long vista, where the jagged verges of crags serrated the serene green sky a star shone, white and splendid, amidst the vanishing vermilion suffusions of the sunset-tide.

V.

In the light of after events, one might wonder if the genial, care-free Edward Briscoe remembered any detail of the discarded arrangement of the previous evening for the transportation of his transitory guest, Frank Dean, to Shaftesville; if he realized that at the moment when the revenue officer would have been starting on the journey, as the host had insistently planned it, he was himself at the turn of the road and just beyond the jutting crag; if he divined that the vibrations of the telephone wire had betrayed the matter to a crafty listening ear on the party-line in the vacant hotel across the ravine—or was the time too short for the consideration? Did he even recognize the significance of the apparition when a swift, erect figure stepped openly from under the shadowy boughs of the balsam firs into the middle of the road, that the bead might be drawn straight? Did he appreciate that the flash is sooner sped than the missile and know his fate before the rifle-ball crashed into his skull!—or was the instant all inadequate and did he enter eternity ere he was well quit of this world?

Frightened by the sudden appearance of the man in the middle of the thoroughfare, the funnel-shaped flare of light, the sharp report of the weapon, the mare, trotting at full speed, swerved, plunged, backed, the reins hanging loose about her heels, her driver having fallen forward upon the dashboard. The dog-cart began to careen to one side as the animal continued to back and rear, deterred from flight by the figure standing still directly in the road. Suddenly she sought to turn in the restricted narrow space, and instantly the wheels were over the verge of the precipice.

All useless were the convulsive efforts of the creature to maintain her footing on the rocky brink, the clutching hoofs, the elastic bounds. With the

weight of the vehicle, the dead man leaning heavily on the dashboard, it was but a moment of suspense—then like a thunderbolt the whole went crashing down into the valley, the depth to be conjectured by the considerable interval of time before the sound of rending boughs and surging foliage in the air gave token that the wreck was hurtling through the trees on the levels a thousand feet below.

Two other men, armed with rifles, had sprung from among the firs and stood aghast and listening on the verge of the crag. There was no longer a sound. The tragedy was complete, irrevocable, before a word was uttered.

"'T warn't *him*!" gasped the youngest—hardly more than a boy indeed. His broad, beardless face was ghastly white, and his lips trembled as violently as his shaking hand.

"Lawd! That was *Edward Briscoe*! What a pity, *sure*! It war a plumb mistake, Copenny," plained an elder man, whose rifle had not been fired. There was a regretful cadence in his voice akin to tears, and he held his long, ragged red beard in one hand as he peered down into the unresponsive depths.

"You oughter hev made sure afore ye teched the trigger, Copenny, that he *war* the revenuer!" cried the young fellow, Alvin Holvey, with a sudden burst of petulance, despite the tragic realization expressed in his quivering face. "Ye're sech a dead shot that ye could hev spared a minute ter make sure of the revenuer, afore *he* could hev pulled a shooting-iron."

The man who had fired the fatal shot had seemed hitherto stunned, silent and motionless. Now he exclaimed in self-justification: "Why, I war sure, plumb sure, I thought. We-uns chased that man Dean clear to Briscoe's house last night—his horse went lame and he got lost from his posse—but when I fund he hed sheltered with Briscoe, we-uns went into the empty hotel ter wait and watch fur him ter go. Not knowin' how many men Briscoe hev got thar, we-uns didn't want ter tackle the house. An' whilst at the hotel the Briscoes' tellyfun-bell rung—ye know it's on a party line with the hotel connection—an' I tuk down the thing they call the receiver an' listened. An'

that's jes' the way Briscoe planned it: ter send the revenuer down an hour by sun with the dog-cart an' his fine mare. Shucks! Ef Briscoe war minded ter step into Frank Dean's shoes, he hev jes' hed ter take what war savin' up fur the revenuer, that's all!" Once more he relapsed into silent staring at the brink, balked, dumfounded, and amazed.

Suddenly he seemed to respond to some inward monition of danger, of responsibility. "I be enough of a dead shot ter stop all that dad-burned talk of yourn!" he drawled in a languid, falsetto, spiritless voice, but with an odd intimation of a deadly intention. "Ye both done the deed the same ez ef ye hed pulled the trigger; ye holped ter plan it, an' kem along ter see it done an' lend a hand ef needed. Ye both done the deed the same ez me—that's the law, an' ye know it. That is sure the law in Tennessee."

"Waal, now, Phineas Copenny, 't warn't right nor fair ter we-uns ter clumsy it up so," protested the young mountaineer. "Ef it hed been the revenuer, I'd hev nare word ter say. I'd smack my lips, fur the deed would taste good ter me, an' I'd stand ter it. But this hyar Mr. Briscoe—why, we-uns hev not even got a gredge agin him."

"No, nor nobody else that ever I hearn of. Mr. Briscoe war a plum favorite, far an' nigh," said old Jubal Clenk, the eldest of the party. "But shucks!" he continued, with a change of tone and the evident intention of preserving harmony among the conspirators. "'Twar jes' an accident, an' that's what it will pass fur among folks ginerally. Mr. Briscoe's mare skeered an' shied an' backed off'n the bluff—that air whut the country-side will think. Whenst his body is fund his head will be mashed ter a jelly by the fall, an' nobody kin say he kem otherwise by his death—jes' an accident in drivin' a skittish horse-critter."

Whether it was a sound, whether it was a movement, none of the group was accurately aware. It may have been merely that mesmeric influence of an intently concentrated gaze that caused them suddenly to turn. They beheld standing in the road—and they flinched at the sight—a witness to all the proceedings. A small, a simple, object to excite such abject terror as blanched the faces of the group—a little boy, a mere baby, staring at the

men with wide blue eyes and un conjecturable emotions. He had doubtless been enveloped in the rug which had fallen from the vehicle as it first careened in the road, and which now lay among the wayside weeds. His toggery of the juvenile mode made him seem smaller than he really was; his scarlet cloth coat, embroidered in Persian effects, was thick and rendered his figure chubby of aspect; his feet and legs were encased in bulky white leggins; he wore a broad white beaver hat, its crown encircled by a red ribbon, and his infantile jauntiness of attire was infinitely incongruous with the cruel tragedy and his piteous plight. Although perhaps stunned at first by the shock of the fall, he was obviously uninjured, and stood sturdily erect and vigilant. He looked alert, inquiring, anxious, resolved into wonder, silently awaiting developments. His eyes shifted from one speaker to another of the strange party.

"Lord! He'll tell it all!" exclaimed Alvin Holvey, appalled and in hopeless dismay.

"Naw, he won't, now," snarled Copenny rancorously. "Thar will be a way ter stop his mouth."

"Why, he is too leetle ter talk. He don't sense nuthin'," cried old Clenk, with an eager note of expostulation, attesting that he was human, after all. "Don't do nuthin' else rash, Phineas Copenny, fur the love of God!"

Jubal Clenk dropped on one knee in front of the little boy, and the two were inscrutably eyeing each other at close quarters. "Hello, Bubby! Whar's yer tongue? Cat got it?" he asked in a grandfatherly fashion, while the other men looked on, grim and anxious, at this effort to gauge the mentality of the child and their consequent danger from him.

Still staring, the little boy began slowly to shake his head in negation.

"What's yer name, Squair? What's yer name?"

But the child still stared silently, either uncomprehending or perceiving that his safety lay in incompetency.

Clenk rose to his feet in sudden relief. "He don't sense nuthin'! He's too little to talk. He can't tell wuth shucks! We will jes' leave him hyar in the road, an' the folks that find what's down thar in the valley will find him too. I wonder somebody ain't passed a'ready. An' sure we-uns oughter be a-travellin'."

But Holvey revolted against this offhand assumption of confidence. He made a supplemental effort on his own account. "Why don't ye tell yer name, Bubby?" he asked cajolingly.

"Tause," the child answered abruptly, "I tan't talk."

Copenny burst into sudden sardonic laughter, with wondrous little mirth in the tones, and the other miscreants were obviously disconcerted and disconsolate, while the small schemer, whose craft had failed midway, looked affrighted and marvelling from one to another, at a loss to interpret the mischance.

"Dadburn it!" said the mercurial Clenk, as depressed now as a moment earlier he had been easily elated. "We-uns will jes' hev ter take him along of us an' keep him till he furgits all about it."

"An' when will ye be sure o' that?" sneered Copenny. "He is as tricky as a young fox."

Half stunned by the tremendous import of the tragedy he had witnessed, the child scarcely entered into its true significance in his concern for his own plight. He realized that he was being riven from his friends, his own, and made a feeble outcry and futile resistance, now protesting that he would tell nothing, and now piteously assuring his captors that he could not talk, while they gathered him up in the rug, which covered head and feet, even the flaunting finery of his big, white beaver hat.

In the arms of the grandfatherly Clenk he was carried along the bridle-path in the dulling sunset, and presently dusk was descending on the austere mountain wilderness; the unmeasured darkness began to pervade it, and silence was its tenant. As the party went further and further into the woods,

the struggles of the child grew fitful; soon he was still, and at last—for even Care must needs have pity for his callow estate—he was asleep, forgetting in slumber for a time all the horror that he had seen and suffered.

But when he came to himself he was a shivering, whimpering bundle of homesick grief. He wanted his mother—he would listen to naught but assurances that they were going to her right away—right away! It was a strange place wherein he found himself—all dark, save for flaring torches. He could not understand his surroundings, and indeed he did not try. He only rubbed his eyes with his fists and said again and again that he wanted his mother. He was seated on a small stone pillar, a stalagmite in a limestone cavern, where there were many such pillars and pendants of like material hanging from the roof, all most dimly glimpsed in the torch-light against an infinitude of blackness. The men who had brought him hither, and others whom he had not heretofore seen, were busied about a dismantled stone furnace, gathering up such poor belongings as had escaped the wreckings of the revenue force. Now and then a glitter from the fragments of the copper still and the sections of the coils of the worm marked the course their ravages had taken, and all the chill, cavernous air was filled with the sickly odor of singlings and the fermenting mash adhering to the broken staves of the great riven tanks, called the beer-tubs. The moonlight came into this dark place at the further end, for this was one of the many caves among the crags that overhang the Little Tennessee River, and once, looking toward the jagged portal, Archie saw a sail, white in the beams on the lustrous current, and asked if they were going in that boat to his mother, for, he said, he knew that she did not live in this cellar.

"Yes, yes," Clenk assured him. They were making ready to leave now, though not in that boat. "An' look-a-hyar! What a pretty! Ye kin hev this ter play with ef ye will be good."

He led the little boy up to a tallow dip blazing on the head of a barrel, that he might have light to examine the token. It was a small bit of the cavernous efflorescence, which, growing on subterranean walls, takes occasionally definite form, some specimens resembling a lily, others being like a rose; the child tried feebly to be grateful, and put it with care into one

of the pockets of his little red coat—his pockets in which he had once felt such plethora of pride!

VI.

When next he saw the river the lunar lustre had dulled on the currents. No more the long lines of shimmering light trailing off into the deep shadow of the wooded banks, no more the tremulous reflection of the moon, swinging like some supernal craft in the great lacustrine sweep where the stream broadens in rounding the point. Now a filmy veil was over all, yet the night was so fine that the light filtered through the mist, and objects were still discernible, though only vaguely visible, like the furnishings of a dream. A rowboat was rocking on the ripples among the boulders at the water's edge. As the child made the perilous descent in the practised clasp of the grandfatherly Clenk, he could look up and see the jagged portal of the cave he had left, high above the river, though not so high as the great, tall deciduous trees waving their lofty boughs on the summit of the cliffs. Certain grim, silent, gaunt figures, grotesquely contorted in the mist, the child's wide blue eyes traced out, as the other moonshiners climbed too down the rugged face of the crag, all burdened with bundles of varying size and unimaginable contents—food, clothing, or such appliances of their craft as the hurried revenue raiders had chanced to overlook. The little boy must have contended with fear in this awesome environment, the child of gentlest nurture, but he thought he was going to his mother, or perchance he could not have submitted with such docility, so uncomplainingly. Only when they had reached the rocky marge of the water and he had been uncoiled from the rug and set upon his feet did he lift his voice in protest.

Clenk had stepped into the boat and seated himself, the oars rattling smartly in the rowlocks, the sound sharp on the misty air, as he laid hold on them. "So far, so good," he exclaimed cheerily.

"Won't they be fur trackin' of *him*?" One of the moonshiners, whom the child had not seen before, seemed disposed to rebuke this easy optimism.

"What fur? They will think Bubby went over the bluff too," Clenk declared definitely.

"There's nuthin' ter show fur it, though," Copenny joined the opposite opinion.

"Nuthin' needed in that mixtry of horseflesh an' human carcass an' splintered wood and leather," argued Clenk.

"Yes, they will hev ter gather up them remains in a shovel," acquiesced Holvey.

The shadowy form of the doubter who had introduced the subject, thick-set, stoop-shouldered, showed in its attitude that he was lowering and ill at ease. "Waal, you-uns hev made a powerful botch of the simple little trick of drawing a bead on a revenuer anyhow. Takin' one man fur another—I never dreamed o' the beat! Copenny war so sure o' the man an' the mare! *I* never purtended to know either. Seems ter me ye oughter be willin' ter lis'n ter reason now."

"Waal, let's hear reason, then," Copenny's sardonic falsetto tones rasped on the air, and the little head under the broad white, gayly beribboned hat turned up attentively, as the child stood so low down among the big booted feet of the armed moonshiners.

"Why, how easy it would hev been ter throw su'thin' over the bluff——" the counsellor began.

"Good Lord!" Clenk exclaimed angrily, from his seat in the boat, "ain't ye got *no* human feelin's, Jack Drann? We-uns never went ter shed the innercent blood nohow. We-uns war loaded fur that tricky revenuer, an' Edward Briscoe war kilt by mistake. An' now ye ter be talkin' 'bout heavin' the leetle, harmless deedie over the bluff!"

"What ails yer hearin'?" retorted Drann angrily. "I said *su'thin'*—his coat, his hat—throw *su'thin'* over, ter make folks think he war in the accident, too—mare run away and the whole consarn flopped bodaciously over the bluff! They will scour the kentry fur Bubby ef thar ain't *su'thin'* positive ter make them *sure* ez he be dead, too."

Jubal Clenk, so readily cast down, meditated dolorously, as he sat still in the boat, on this signal omission in the chain of evidence. "It would sure hev made it all 'pear a heap mo' like an accident," he said disconsolately. Then, with suddenly renewing hopefulness, "But 't ain't too late yet—good many hours 'fore daylight. We kin send the coat an' hat back an' toss them over the bluff long before it is light good."

Thus it was that the moonshiners laid hold on the boy's simple possessions, and thus it was that Archie fought and contended for his own. He clutched at the cuffs as Copenny dragged the sleeves over his wrists; he held on to his hat with both hands, despite the grip of the elastic under his chin, and he stamped and screamed in a manner that he had heretofore known to inspire awe and respect in the nursery and disarm authority. Alack, it had lost its efficacy now! Most of the men took no notice whatever of his callow demonstrations of wrath, though old Clenk, with a curious duality of mental process, laughed indulgently at his antics of infantile rage, despite his own absorptions, his sense of danger, his smart of loss and wreck of prospects.

It was Copenny who undertook to carry the coat and rug back to the spot, and they willingly agreed to this on the score that he knew best the precise locality where the catastrophe had befallen. Secretly, however, he had resolved not to rejoin his companions at a named rendezvous, for he had bethought himself that if all fled but him, remaining in his accustomed home, he would necessarily avoid implication in the crime with them. The boat had been provisioned with a view to their escape by water when the ambush of the revenue officer had been planned, and they were now congratulating themselves on their foresight as they prepared to embark. Clenk had an ill-savored story to tell of the apprehension of a malefactor through the coercion of hunger, constrained to stop and beg a meal as he

fled from justice, and Drann had known a man whose neck was forfeited by the necessity of robbing a hen-roost, the cackling poultry in this instance as efficient in the cause of law and order as the geese that saved Rome. Copenny, listening sardonically, could not be thankful for such small favors. His venture as a moonshiner at all events was, so to speak, a side line of employ. He was trained a blacksmith, and had a pretty fair stake in the world, according to the rating of a working-man of this region, now in jeopardy of total loss. The rest had nothing to lose, and as ever and anon they fell to canvassing the opportunities of beginning anew in a fresh place the dubious struggle for bare subsistence, his determination to slip free of them was confirmed. The morrow would see him in his appointed place—nay, he perceived a sure means of hoodwinking any possible suspicion of the authorities by finding a conspicuous position in the searching parties who would go out, he knew, as the night wore on and the alarm was given that the owner of the bungalow had not returned.

The boat with the others embarked was far up the river before the child had ceased to sob and plain for his precious gear. He began to listen curiously to the splash of the oars as they marked time and the boat rode the waves elastically. There was no other sound in all the night-bound world, save once the crisp, sharp bark of a fox came across the water from the dense, dark riparian forests. The mists possessed all the upper atmosphere, but following the boat were white indiscriminated presentments on the sombre surface of the river, elusive in the vapor and suggestive of something swimming in pursuit. Once Archie pointed his mittened hand at this foaming wake, but the question died on his lips as the dank autumnal air buffeted his chill cheek. He shivered in his thin little white linen dress, meant for indoor wear only, with its smart red leather belt clasped low and loose about it, and the hardship of cold and hunger tamed him. He was glad to nestle close to the pasty-faced Holvey, who had not yet recovered the normal glow of complexion, and to stick his yellow head under the moonshiner's arm for warmth while he steered the craft. Indeed, when the boat was at length run into one of the small, untenanted islands and the party disembarked, the little boy began to chirp genially and to laugh for joy as a fire was kindled amidst the rocks and brush of the interior, invisible from the shores. He basked in the blaze and grew pink and gay, and even

sought to initiate a game of peek-a-boo from behind his white mittens with one of the ruffians; and although a bit dashed when the surly, absorbed eyes stared unresponsively at him, he plucked up spirit to ask if they were going to have supper, and to say that he wanted some, and that he was a very good boy.

"Breakfast, Bub—this is the 'tother end of the day," Clenk explained, preparing to broil slices of meat on the coals. There was soon a johnny-cake baked on a board set up before the flames, but the pork was evidently a new proposition to the small captive, and although he eyed it greedily he could make no compact with it. Now and again he licked with a grimace of distaste the unsavory chunk given him, and desisted, to watch with averse curiosity the working jaws of the men and the motion of the muscles in their temples as they hastily gobbled the coarse fare which they cut with their clasp-knives. The fire duplicated their number with their shadows, and occasionally he eyed these semblances speculatively as they stretched on the sandy ground or skulked in the underbrush behind their unconscious principals. Once or twice he lifted his own arm with an alert gesture in imitative energy, and looked over his shoulder at his squat little image, to note its obedience to his behest. One might have thought he had put the greater part of the fat meat in smears about his rosy cheeks and fresh baby lips, and certainly the pleated bosom of his immaculate linen suit had received a generous remembrance. The remnant was still in his hand when he began to nod in the drowsy influences of the heat of the fire; he had collapsed into insensibility long before the coals were raked apart to dull and die. He had no knowledge of the fact when he was borne away by Holvey, who had been delegated to assume charge of him, and who sulked in disaffection under the responsibility and his doubts of the success of their plan.

Once more in the boat, the chill of the dank river atmosphere awakened little Archie. He sent forth a peevish, imperative call, "Mamma!" so shrill and constraining, reaching so far across the dark water, that a hand before his lips smothered its iteration in his throat. "Bee-have!" Holvey hissed in his ear, and as the child struggled into a sitting posture his involuntary bleat, "Mamma!" was so meekened by fear and plaintive recollection and

submissive helplessness that it could scarcely have been distinguished a boat's length distant.

The moon was down, but the morning star was in the sky, splendid, eloquent, charged with a subtle message expressed in no other sidereal scintillation, heralding not only the dawn, but palpitant with the prophecy and the assurance of eternal day. There was a sense of light about the eastern mountains, albeit so heavily looming. And suddenly, all at once, the faces of the shadowy men who had borne him hither were fully revealed, and as he sat and shivered in his thin little dress he eyed them, first one for a long time, and then another, and he shivered throughout with a fear more chilly than the cold. Perhaps it was well for the equilibrium of his reason that fear so acute could not continue. He presently began to cough, and when he sought to reply to a question he could only wheeze. An infantile captive wields certain coercions to fair treatment peculiar to nonage. The moonshiners had suddenly before their eyes the menace of croup or pneumonia, and, to do them justice, the destruction of the child had not been part of their project. There ensued gruff criminations and recriminations among them before the baby was rolled up in a foul old horse-blanket, and a dose of the pure moonshine whisky, tempered with river water, was poured down his throat. It may have been the slumber induced by this potent elixir, or it may have been the effects of fever, but he was not conscious when they reached the forks of the Tennessee and were pulling up the Oconalufy River. He only knew vaguely when once more they had disembarked, though now and then he sought vainly to rouse himself to the incidents of a long march. Finally he was still and silent so long in old Clenk's arms as to excite immediate fears. Now and again as they forged along at the extreme limit of their endurance they took the time to shake up the poor baby and seek by suggestion to induce him to say that he felt better. But his head had begun to roll heavily from side to side, and they could not disguise from themselves that he looked at them with uncomprehending eyes, and, left to himself, sank immediately into stupor that simulated slumber.

"Fellows," said old Clenk drearily, "I believe this leetle chap be agoin' ter make a die of it!"

But he was still alive the following morning when the chill, clouded day broke, and a happy thought occurred to old Clenk. Throughout his illness the child had instinctively refused the coarse food proffered him, and this was brought anew to their notice when they paused to eat their scanty rations in a deep, secluded dell. A stream ran foaming, crystal clear, amidst great rocks hemming it in on every side, save where a jungle of undergrowth made close to the verge. A sudden sound from these bosky recesses set every nerve of the fugitives a-quiver. Only the tinkle of a cow-bell, keen and clear in the chill rare air! There was the exchange of a sheepish grin as the tones were recognized, when suddenly Clenk arose, a light as of inspiration on his dull old face. "Soo, cow, soo!" he called softly; then listened intently for a responsive stir in the bushes. A muttered low—and he pressed into the covert in the direction of the sound. The docile animal lifted her head at an approach, then calmly fell a-grazing again. She let down her milk readily, though looking over her shoulder questioningly during the process, for Clenk was no practised hand. He contrived, however, to fill a "tickler" in which there was a small residue of whisky, which possibly aided the efficacy of the milk, for the child was perceptibly revived after the first draught was forced down his throat, and when an hour or two afterward the bottle was put to his lips he voluntarily drank a few swallows with obvious relish.

"Ye leetle old toper," cried Clenk delightedly, waxing jocose in his relief, "ye been swindling me! Ye hev been playin' sick to trick me out 'n this fine milk punch!"

Archie did not comprehend the banter, but he smiled feebly in response to the jovial tone, and after a time babbled a good deal in a faint little voice about a train of steam-cars, exponent of a distant civilization, that with a roar of wheels and clangor of machinery and scream of whistles and clouds of smoke went thundering through the wild and wooded country. To the old man's delight, he sought to lift himself to a sitting posture in Clenk's arms, and asked if they were to travel soon on the "choo-choo train." Yes, indeed, he was assured, and he seemed to experience a sort of gratified pride in the prospect. With this fiction in mind, he presently fell into a deep and refreshing slumber.

Suddenly the child was all himself again, glad, hopeful, expectant, with the sense of being once more under a roof, touched by a woman's hand. Then he looked keenly into the face before him—such a strange face! He was tempted to cry out in terror; but the mind is plastic in early youth: he had learned the lesson that now his protests and shrieks availed naught. A strange face, of a copper hue, with lank black hair hanging straight on both sides, a high nose, a wide, flat, thin-lipped mouth, and great, dark, soft eyes amidst many wrinkles. He could not have thus enumerated its characteristics, nor even described its impression on his mind; but he realized its fundamental difference from all the faces he had ever seen, and its unaccustomed aspect appalled him. He was petrified by his uncomprehending amazement and an intensity of grief that was not meet for his tender years in this extreme. He could hardly realize his own identity. He did not seem himself, this child on the floor in front of a dull wood fire, squalid, wrapped in an old horse-blanket, facing this queer woman, sitting opposite him on the uneven flagging of the hearth.

All at once his fortitude gave way. He broke forth into sobs and cries; his heart was heavy with the sense of desertion, for he wept not for his home, his mother, his kind friends, Ned and Gad-ish—on these blessings he had lost all hold, all hope. He mourned for his late companions, forsooth!—the big men, the boat, the river, the star. They had so cruelly forsaken him, and here he was so poignantly unfamiliar and helpless. When the woman held out a finger to him and smiled, he bowed his head as he wept and shook it to and fro that he might not see her, for her yellow teeth had great gaps among them, and as she laughed a strange light came into her eyes, and he was woe—woe!—for his comrades of the rowlocks and the Tennessee River.

It would have seemed a strange face to others as well as to the poor baby. For this was indeed an Indian woman. A late day, certainly, for a captive among the Cherokees, but the moonshiners felt that they had scored a final victory when they left the little creature within the Qualla Boundary, the reservation where still lingers a remnant of that tribe, the "Eastern Band," on the North Carolina side of the Great Smoky Mountains, a quaint survival of ancient days amidst the twentieth century. The moonshiners had

represented the little boy as the son of one of their party, recently a widower. They stated that they were seeking work among the laborers employed in a certain silver mine beyond the Qualla Boundary, and that they had lost his kit with the rest of his clothes in the Oconalufy River hard by. Leaving some goods, purchased at a cross-roads store on the way, to supply this need, with a small sum of money for his board in advance, and fixing an early day for their return, they departed.

Their story excited no suspicion at Quallatown: the craft of the Cherokees is an antiquated endowment, and has not kept pace with modern progress. Even the woman, who arrogated a spirit of prophecy and had long practised the devices of a fortune-teller, thus accustomed to scan the possibilities and in some degree versed in the adjustment of the probabilities, accorded the homely verisimilitude of their worldly-wise representations the meed of a simple and respectful credulity. The mountaineers were ignorant indeed in their sort, but far too sophisticated to entertain aught but the most contemptuous disbelief in her pretensions of special foresight and mysterious endowment. They did not fear her discrimination, and told their story, through an interpreter, with a glib disregard of any uncanny perspicacity on her part. She was one of the many Indians of the reservation who speak no English. Her cabin was far from Quallatown, and indeed at a considerable distance from any other dwelling. With her and her few associates, the moonshiners thought the child would soon forget his name, his language, and his terrible experience, and they promised themselves that when all was buried in oblivion they would come and reclaim him and place him more suitably among themselves, and see to it that he should have some chance, some show in the world to make a man of himself. All of this had served to soothe the vague pricks of conscience, which from time to time had harassed them as the attractions of the child began to make an impress even on their indurated hearts, and all was forgotten as soon as they caught the first glimpse of the red clay embankment of the new railroad, crawling across the valley country far away in one of the adjoining States; for they sought employment in the construction gangs here, and the silver mines of their pretended destination held all its treasures unmolested for any pick or shovel of their wielding.

VII.

The discovery of the catastrophe came late to the inmates of the bungalow on the crag. The suave resplendent sunset drew slowly to a majestic close. The color deepened and glowed in the red west, even while the moon made speed to climb the eastern mountains. Long burnished silver shafts were all aslant in the woods, the dense autumnal foliage still visibly russet and yellow, before Mrs. Briscoe came out on the veranda where Bayne lounged in the swing, although no longer able to scan the pages of the magazine in his hand.

"Don't you think it is odd that Ned is so late?" she asked.

"I don't know his habit," he rejoined carelessly. "But it is almost as light as day in the road."

"He is usually so particular about detaining the servants," she said uneasily, evidently a bit disconcerted. "Dinner has been ready to serve for nearly an hour."

She returned indoors after a little, but Bayne still swung languidly to and fro, all unprescient of the impending disclosure. Presently he glanced through the window of the hall near at hand, noting how the tints of the pretty gowns of the two women now before the fire imparted a rich pictorial effect to the interior, the one costume being of a canary tint, with bretelles and girdle of brown velvet, while Mrs. Briscoe's striking beauty was accentuated by the artistic blending of two blues. In the interval, while his attention was diverted from the scene without, a change had supervened there, and he experienced a sudden disquieting monition as he observed that

the groom, who had been hovering in the road at some distance, had been joined by another stable-man, and that the butler, easily distinguishable from the others in the gathering gloom by his white shirt front, was swiftly crossing the lawn toward them. Bayne sprang from the swing, leaped silently from the veranda into the grass, and walked quickly toward the group. They had already descried his approach, and eagerly met him half way—in a state verging on panic, he found to his own fright and dismay.

Something had happened, they averred. Mr. Briscoe was never late like this. He had too much consideration for his household. He would not risk occasioning Mrs. Briscoe anxiety. He would not keep little Archie out in the night air—he was very particular about little Archie. Oh, Fairy-foot was all right—there was not a horse in Tennessee that Mr. Briscoe could not handle. They had no fear at all about the mare. But after Mr. Briscoe had driven away, the groom who had been ordered to investigate the hotel had found signs of intrusion in the vacant building. Broken victuals were on the hearth of the serving-room adjoining the great dining-hall, and an old slouched hat was lying in that apartment, evidently dropped inadvertently near one of the tables. A rude lantern with a candle burned down almost to the socket was in an upper chamber, usually illuminated by acetylene gas, as was all the building. Bayne remembered, according the circumstance a fresh and added importance, the fleeing apparition in the vacant hotel that had frightened Lillian, and Mrs. Briscoe's declaration that a light had flashed the previous night from the interior of the deserted building. But this intrusion was not necessarily of inimical significance, he argued. Tramps, perhaps, or some belated hunter stealing a shelter from the blinding fog, or even petty thieves, finding an unguarded entrance—it might mean no more. In fact, such intrusion was the normal incident of any vacant house in remote seclusion, unprotected by a caretaker. But this reasoning did not convince the servants. Something had happened, they reiterated; something terrible had happened!

Bayne, flouting fear as a folly, yet himself feeling the cold chill of dismay, dared not dismiss their anxieties as groundless. He hastily arranged for a patrol of the only road by which Briscoe could return, incongruously feeling at the moment absurd and shamefaced in view of his host's

indignation and ridicule should he presently appear. Bayne had ordered the phaeton with the intention of himself rousing the country-side and organizing a search when, to his consternation, the two ladies, who had observed the colloquing group, issued on the veranda, frantic with terror, pale and agonized. Both had grasped the fact of disaster, albeit unformulated, yet both hoped against hope.

"Take me with you!" Lillian cried, seizing Bayne's wrist in a grip like steel. "Take me to my child!"

He could not be rid of her importunacy, and he came to think it was well that the two should be separated, for Mrs. Briscoe had not abandoned all self-control, and her gallant struggle for composure appealed for his aid.

"No," she had said firmly; "Ned would expect me to wait for him here. Dead or alive, he will come back to me here."

He was glad to get Lillian out of her sight and hearing. With every muscle relaxed, almost collapsed, curiously ghastly in her gay gown, she was lifted bodily into the vehicle, repeating constantly with bloodless lips and a strange, false, mechanical voice, "Take me to my dead child!"

Once as they spun swiftly through the misty sheen and dewy shadow, the moisture-laden boughs that thrust across the narrow roadway now and again filliping them on the cheeks with perfumed showers, she turned that death-smitten face toward him and said in her natural, smooth tones, "You have your revenge at last. It couldn't be a heavier blow!"

"I want you to be still!" he cried with vehement rudeness. "I can't drive straight if you rattle me. I am taking you to your child."

And once more broke forth the eerie shrilling anew: "Take me to my child! Take me to my dead child!"

At the first house that Bayne roused, he was encumbered and harassed by her strange intolerance that they should speak of Briscoe at all; for the summer sojourner was a favorite with his humble neighbors, and a great

tumult of concern ensued on the suggestion that he had encountered disaster in some sort.

It all seemed to the jealous mother-heart to minimize her own sacred grief. "But he had my child with him, my dead child!" she would shrill out. And the slow rustic's formulation of a suggestion or a plan must needs tarry in abeyance as he gazed awestruck at this ghastly apparition, decked in trim finery, mowing and wringing her hands, shown under the hood of the phaeton in the blended light of the moon and the mountaineer's lantern, while his household stood half-clad in the doorway and peered out, mute and affrighted, as at a spectre.

The scanty population of the district turned out to the last man. The woods of the vicinity were pervaded with exploring parties, now and again hallooing their signals, till the crags rang with the melancholy interchange of hail and hopeless response. In fact, the night was nearly spent before a hunter, roused by the echoing clamors, joined the search with the statement that he had been at a "deer stand" in the valley during the afternoon, and had noted at a distance some object crash down from the summit of a certain crag. He had fancied it only a fragment of the rock falling, and had not the curiosity to leave his occupation and go so far to investigate the nature of a circumstance seemingly of so little significance.

Thus it came about that the inquisition of the coroner's jury resulted in a verdict of death by accident. It was supposed that the little child's body was crushed indistinguishably in the mangled mass of horse and man, themselves scarcely to be disintegrated in the fall from so stupendous a height. The big white beaver hat of the child was found floating on the surface of a deep pool hard by, half quagmire, half quicksand, and would in itself have sufficed to dispel any doubts of his fate, had doubt been entertained. The burial was accomplished as best might be, and the dolorous incident seemed at an end. But throughout the dry, soft Indian summer the little boy's jaunty red coat swung in the wind, unseen, unheeded, on the upper boughs of a tree in the valley, where it had chanced to lodge when the treacherous Copenny had cast it forth from the bluff above to justify the hypothesis of the fall of the little fellow from those awful heights.

Gradually the catastrophe ceased to be the paramount sensation of the country-side. Bayne's interests of necessity had drawn him back to his city office. He had remonstrated against the decision of the two bereaved women to remain in the bungalow for a time. He had advocated change, travel, aught that might compass a surcease of the indulgence of sorrow and dreary seclusion, that are so dear and so pernicious to the stricken heart. But in their affliction the two clung together and to the place endeared by tender associations of the recent habitation of the beloved and vanished. They said that none could feel for them as each for the other, and, in fact, their awful tragedy had cemented an affection already almost sisterly. Thus the bungalow caged through the opening of wintry weather these tenants of woe who had come like the birds for sunshine and summer only. Since the community continued in absolute ignorance that any crime had been committed, there was no sense of insecurity or apprehension of danger, other than might menace any country house, isolated and secluded in situation. The normal precautions were taken, the household was strengthened, and Mrs. Marable, Lillian's aunt, or rather her uncle's wife, who had come to her at the first news of her affliction, had consented to remain during her stay. Owing to the discovery of the intrusion into the hotel, with no other fear than material injury to the property by frisky boys of the vicinity, the management had installed there a caretaker with his family, who was also, as weather favored, to superintend some repairs to the building. It had been arranged by Bayne, previous to his departure, that the eldest son, a stalwart youth of twenty, should sleep in a room at the bungalow, having his rifle loaded and pistols at hand, provided against any menace of disturbance. Thus the winter closed in upon a seclusion and solitude of funereal intimations.

The winds were loosed and rioted through the lonely recesses of the craggy ravines and the valley with a wild and eerie blare; the leaves, rustling shrilly, all sere now, so long the weather had held dry, fled in myriads before the gusts. Soon they lay on the ground in dense masses, and in the denudation of the trees the brilliant tints of the little coat, swinging so high in the blast, caught the eye of a wandering hunter. At first sight, he thought it but a flare of the autumnal foliage, and gave it no heed, but some days afterward its persistence struck his attention. It seemed a tragic and

piteous thing when he discovered its nature. He cut the tree down, too high it was lodged for other means to secure it, and after the county officials had examined it, he brought it to the mother.

Over it Lillian shed such tears as have bedewed the relics of the dead since first this sad old world knew loss, since first a grave was filled. How unavailing! How lacerating! How consoling! She began to feel a plaintive sympathy for all the bereaved of earth, and her heart and mind grew more submissive as she remembered that only for this cause Jesus wept, albeit a "man of sorrows and acquainted with grief."

The little coat, so gayly decorated, reminded her of another coat of many colors, its splendor testimony of the gentlest domestic affection, brought stained with blood to another parent long ago, to interpret the cruel mystery of a son's death. And after all these centuries she felt drawn near to Jacob in the tender realization of a common humanity, and often repeated his despairing words, "I shall go down into the grave unto my son mourning."

Then her heart was pierced with self-pity for the contrast of his gratuitous affliction with her hopeless grief. So happy in truth was he, despite his thought of woe, that he should have lamented as dead his son, who was so full of life the while, whose future on earth was destined to be so long and so beneficent. She spoke of this so often and so wistfully that it seemed to Gladys to precipitate an illusion, which afterward absorbed her mind to the exclusion of all else.

VIII.

One sinister day when the slate-hued clouds hung low, and the valley was dark and drear with its dense leafless forests, when the mountains gloomed a sombre purple and no sound but the raucous cawing of crows broke upon the sullen air, Lillian's paroxysms of grief seemed to reach a climax. Their intensity alarmed her two companions, and the forced composure and latent strength of character of Gladys were tried to the utmost to sustain her own equilibrium. But as the afternoon wore away Lillian grew calmer, though her mind never deviated from the subject. The trio had ceased to sit in the large reception hall, for its gun-rack and rods and reels, its fur rugs, its trophies of sport, its mandolin and flute and piano, were now pathetically reminiscent of the vanished presence of its joyous and genial owner. They used instead the small library which opened from it, where a spacious bay-window gave ample light in the dreary days, and the big wood fire sent its flash and fragrance to the remotest corner. It filled with a rich glow the fabric of the little red coat as the mother held the sleeve to her lips and then turned it to readjust the cuff creased in folding. "He used to look so pretty in it. My beauty! My baby! My own!" she cried out in a voice muffled, half-smothered, by her choking throat. "And he thought it so fine! He valued it beyond all his other possessions," she continued presently with a melancholy smile, even while the tears, so bitter that they stung her cheeks, coursed down her face; for she had begun to find a languid, sad pleasure now and then in discursive reminiscence, and Gladys, who knew the little fellow so well, could respond with discretion and stimulate this resource for the promotion of calm and resignation. "You remember, Gladys, don't you, how he delighted in these pockets? You were with me when he first got the coat. He doubted if he were really going to have pockets, because there

were none in his little white reefer. Do you remember how he looked when I lifted the flap— isn't the embroidery lovely?—and put his dear little hand into his first pocket? How surprised he was when I showed him this pocket between the facing and the lining! I wanted him to have enough pockets—he admired them so! He had never dreamed of finding one here. I told him it was his inside pocket—he called it his 'shy pocket.'"

"A good name for it, too," commented Gladys. "Nobody would ever think to find a pocket there."

Lillian had suddenly ceased to speak. She had suited the action to the word and slipped her own fingers into the pocket. There was something within. She drew it forth, startled, her pale face all contorted and ghastly. It was a bit of stone, of white stone, fashioned by curious nature in the similitude of a lily, wrought in the darkness, the silence of the depths of the earth. Lillian had previously seen such things; she recognized the efflorescence of a limestone cavern. She sprang up suddenly with a scream that rang through the room with the force and volume of a clarion tone.

"This child has been in a cave!" she shrilled, remembering the raid on the moonshiners' cavern. "He is not dead. He is stolen, *stolen!*"

The logic of the possibilities, cemented by her renewal of frantic hope, had constructed a stanch theory. She was reasoning on its every phase. The coercion of this significant discovery had suggested the truth. "This coat was left as a blind, a bluff, to cover the tracks of a crime. Gladys, Gladys, think—*think!*"

But poor Gladys, in her deep mourning gown, all her splendid beauty beclouded by grief, sadly shook her head, unconvinced. The child had possibly found the stone, she argued.

"Would he not have shared his joy with every creature in the household?" demanded Lillian. "Did he ever have a thought that I did not know?"

"It might have been given to him," Gladys sadly persisted.

"Remember his disposition, Gladys, his grateful little heart. He would have worn us all out, showing the gift and celebrating the generosity of the giver. How flattered he was, always, to be considered! He never seemed in the least to care for the value of the thing. He would cherish an empty spool from a friend's hand. It was wonderful how he loved to be loved. I feel sure, I *know*, that coat was taken from him; and he is alive, *stolen*."

And from this conviction she would not depart. It was a folly, a frenzy, her two friends contended. Its indulgence would threaten her sanity. They besought her to consider anew. The discovery of such a stone in this mountain region was altogether devoid of significance. Right reason and religion alike dictated submission to the decrees of Providence.

These arguments were all thrown away. Neither could urge aught to restrain her. With a swift strength of gait that seemed amazing to those who had witnessed her feeble dragging about the house for weeks past, Lillian flashed through the door, and suddenly there was the keen tinkle of a bell in the darkening, chill spaces of the unused hall. The other two, startled, appalled, as in the contemplation of the aberrations of acute mania, scarcely knowing whether to follow or to call for help, remained motionless, gazing at each other in pallid agitation, awaiting developments, of which they could divine naught.

Lillian, however, was perfectly calm as she called up "Long Distance" and gave the address of Julian Bayne in the city of Glaston—the number of his office and his residence as well.

The two women in the firelight glanced at each other in mute significance. Then Lillian urged the operator at Shaftesville to the utmost diligence. "Find him wherever he is. Send special messenger. Get him to the 'phone at once. Emergency call! Make them understand that at the Glaston exchange."

Mrs. Marable, a little, precise, wrinkled old lady, with a brown taffeta gown and a Marie Stuart lace cap, cherished the traditions of the old school of propriety, and the controlling influence proved strong even amidst this

chaos of excitements. As Mrs. Royston returned in a state of absolute exaltation to the fireside, "Lillian," said Mrs. Marable coldly, "the officers of the law are the proper parties for you to appeal to, if you are going to pursue this obsession. Why should you call up that—man? Why don't you call the sheriff of the county?"

"Because I want Julian Bayne. I believe in him! I can trust him! It is almost like the hand of omnipotence—there is help in the very thought of him."

There were no more tears. She sat strong, elate, her head held high, her hands folded calmly on the crape pleats of the black gown she wore for the child's sake, ready to wait the evening through. But there was a prompt response. When the telephone-bell jarred out suddenly in the dim stillness of the hall, Gladys sprang up with a sharp cry, her hands to her ears, as if to shut out the sound. But Lillian ran lightly out of the room, and the two heard in wonder the sure vibrations of her clear composed accents. "Yes, Long Distance, this is Mrs. Royston." Then suddenly her tones were pervaded with embarrassment: "Oh, Mr. *John* Bayne.... Oh, the father of Mr. Julian Bayne.... No, no, no commands.... Thank you very much. Only the present address of Mr. Julian Bayne."

Once more the two in the library exchanged a glance expressive of more than either would have been willing to put into words. For there was a very definite interval of delay at the telephone, and it would need no sorcerer to divine that the father might deem that this lady, who had so signally befooled his son heretofore, had no beneficent concern to serve with his address. But the old gentleman was evidently the pink of punctilio. Moreover, Julian Bayne had already proved himself man enough to be safely chargeable with his own affairs.

"At Crystal?... Thirty miles from Shaftesville?... Telephone exchange there?... So much obliged! Good-by!"

The bitter disappointment! The torturing delay! Gladys dreaded to witness their effects on Lillian, baffled at the outset in this miserable

delusion that her child still lived, because of a bit of stone in the pocket of a coat he had worn. It would debilitate her as completely as if her belief were founded on cogent reason. But Lillian, with a singularly fresh aspect, with a buoyant energy, swept into the room after calling up Crystal, cool, collected, as competent of dealing with delay and suspense as factors in her plan as if it were some commonplace matter of business, and naturally dependent on the contingencies which environ the domain of affairs. The lamps came in and filled the room with a golden glow, as she sat in a majestic assurance that gave her an aspect of a sort of regal state. Her hair, ill-arranged, disordered in lying down throughout the day in her reclining chair, showed in its redundance the splendor of its tint and quality; her face, lately so wan and lean and ghastly, was roseate, and the lines had strangely filled out in soft curves to their wonted contour; her hands lay supple and white and quiet in her lap, with not a tense ligament, not a throbbing fibre—delicate, beautiful hands—it seemed odd to her companions to think how they had seen her wring them in woe and clench them in despair. Her black gown with its heavy folds of crape had an element of incongruity with that still, assured, resolved presence, expressing so cheerful a poise, so confident a control of circumstance. She did not expend herself in protest when at ten o'clock they besought her to go to bed, to be called should the telephone-bell ring. Her negation was so definite that they forbore futile importunacy. She did not even waste her strength in urgency when they declared that they would keep the vigil with her. She merely essayed a remonstrance, and, since it was obviously vain, she desisted. She would not discuss the theme. She had no words. It even seemed that she had no thoughts, no fears, no plans. She was annulled in waiting—waiting for the moment, the opportunity to take action. While the time went by, she sat there as under a spell of suspended animation, fresh, clear, capable, tireless, silent. The housemaid came in once and mended the fire, but later Gladys, mindful of the curiosity of servants, forbore to ring the bell and threw on the logs herself; then sat down to gaze again into the depths of the coals, flickering to a white heat at the end of the glowing red perspective, and wonder what was to come to them all—indeed, what was this strange thing that had already befallen them in the obsession of this silent woman, who sat so still, so suddenly endued with vigor, so brilliant with health and freshness, out of a state of mental anguish bordering on nervous

prostration? Was it all fictitious?—and was there something terrible to ensue when it should collapse? And what action was incumbent on her hostess, left to face this problem in this lonely country house in the dead hours of night?

IX.

The wind had risen; the swaying of the great trees outside was partially visible as well as drearily audible to the group, for Gladys had postponed ordering the shutters closed, and then had forgotten them. The gigantic dim shapes of the oaks surged to and fro in an indiscriminated shadowy turmoil. It was a dark night, and cloudy. Vast masses of vapor were on the march, under the coercion of the blast that followed fast and scourged and flouted the laggards. Mrs. Marable noted now and again a light and tentative touch on the panes, and began to wonder how far the illumined window could be seen down the road. Was it not calculated to allure marauders and nighthawks to this lonely house? She was moved to hope that the stalwart son of the hotel caretaker, who occupied a room at the bungalow for the greater security of its occupants, was not a heavy sleeper; though from the stolid, phlegmatic appearance of the young man, of a sluggish temperament, she drearily thought it possible that he could be roused by no less means than applying a torch to his bed furniture to bring him out in a light blaze. She experienced a great revulsion of relief when she began to recognize the mysterious sound that had attracted her attention. It was sleet—no longer slyly touching the glass here and there, but dashing with all the force of the wind in tinkling showers against it. The sound had its chilly influence even before the warm fire.

Suddenly the shock of the bell, jangling out its summons in the dark cold hall! Again Lillian's composed, swift exit in response. Crystal had answered, and here was Mr. Julian Bayne at the hotel and on the wire. Could he come to her at once, at her utmost need, and by the first train? Oh! (at last a poignant cadence of pain) there was no train? Crystal was not on a railroad at all? (A pause of silent, listening expectancy, then the keen

vibration of renewed hope.) Oh, could he? Could he really drive across country? But wasn't it too far? Oh, a fast horse? Fifty miles? But weren't the roads dreadful?

"Oh—oh, Gladys, he has rung off! He was in such a hurry I could hardly understand him. I could hear him calling out his orders in the hotel office to have his horse harnessed, while he was talking to me."

The effort was triumphantly made, and Julian Bayne was coming, but as she returned from the chill hall to the illumined, warm room the tinkle of ice on the window-pane caught her attention for the first time.

"Snow?" she said, appalled; then, listening a moment: "And there is sleet! I wonder if it is more than a flurry."

She ran to the window, but, already frozen, the sash refused to rise. She pressed her cheek to the pane and beheld aghast a ghostly and sheeted world, so fast had the snowflakes fallen, and still the sleet sent its crystal fusillade against the glass.

"Oh!" she exclaimed, "Julian Bayne can never come safely through this ice storm and up the mountain. Listen—listen! It is hailing now! Oh, he will break his neck! Remember what a wild and savage thing it is that Julian Bayne calls a fast horse! He will lose his way in the woods and freeze to death; and after all, it is perhaps for nothing. I can wait—I can wait—time is not so essential. Oh, I will postpone his coming! I will call him up again! Run, Gladys, ring the bell! Call up Long Distance! I can't get there quickly enough."

And indeed it seemed some feeble old woman hirpling through the shadows, rather than the vigorous commanding presence of a few minutes ago. Gladys felt that the reaction was ominous as Lillian held the receiver with a hand that shook as with palsy. All had feared the usual delay, but while they were still in the hall the bell jangled, and the night-clerk of the hotel in Crystal responded—little to a cheering effect to the listener, though of this he was unaware. Mr. Bayne had already set out, he stated glibly. He must be five miles away by this time (the clerk evidently thought that he

pleased his interlocutor by his report of the precipitation with which Mr. Bayne had obeyed her summons). Mr. Bayne was a good judge of horse-flesh, and the clerk would venture to say that he had never handled the ribbons over a higher-couraged animal than the one he had between the shafts to-night. Pretty well matched, horse and driver—ha! ha! ha! If anything could get through the ice-storm to-night, it was those two! Oh, yes, it had been snowing hard at Crystal for two hours past.

So he rang off jauntily, fancying that Julian Bayne's presence was much desired at some house-party or romantic elopement, or other lightsome diversion in the upper country.

"How could I? How could I, Gladys?" Lillian said again and again, white, wild-eyed, and haggard, so limp and nerveless that she could not have reached the library had not the other ladies supported her between them, half carrying her to her reclining chair. "You both think I was wrong, don't you?" She looked up at them with agonized eyes, pleading for reassurance.

"Well, dear, time is not an element of importance just now, it would seem, to be considered against other disadvantages—so many weeks having already passed. A day or two more would not have mattered," returned Mrs. Marable, fatally candid.

Once again the blast drove against the windows with elemental frenzy, shaking the sashes, that being hung loosely, rattled in their casings. No more the dark, glossy spaces between the long red curtains reflected fragmentary bits of the bright, warm room within, or gave dull glimpses of the bosky grove and the clouded sky without. The glass was now blankly white, opaque, sheeted with ice, and only the wind gave token how the storm raged. It was indeed a wild night for a drive of fifty miles through a mountain wilderness, over roads sodden with the late rains, the deep mire corrugated into ruts by the wheels of travel and now frozen stiff.

But the roads might well be hopelessly lost under drifts of snow, and the woods were as uncharted as a trackless ocean. Many water-courses were out of the banks with the recent floods. Gladys remembered that the county

paper had chronicled the sweeping away of several bridges; others were left doubtless undermined, insecure, trembling to their fall. Julian would be often constrained to trust his life to his plucky horse, swimming when out of his depth, and dragging after him, as best he might, the vehicle, heavy with its iron fixtures, and reeking with the water and the tenacious red clay mire. And then, too, the mountain streams were beset with quick-sands—indeed, every detail of the night journey was environed with danger. He could scarcely be expected to win through safely, and Gladys felt a rush of indignation that he should have attempted the feat. Must a man be as wax in a woman's hands—especially a woman whom he knew unreliable of old, who had failed him when his whole heart was bound up in her? At her utmost need, she had said, to be sure, but he had not canvassed the urgency of the necessity, he had not even asked a question! He had simply rushed forth into the blizzard. But even while she contemned his foolhardiness, she was woe for Lillian!—to entertain a hope, even though the folly of illusion, as an oasis in her deep distress, a sentiment so revivifying, so potent, that it seemed to raise her as it were from the dead; and yet within the hour to be battered down by self-reproach, an anguish of anxiety, of torture, of suspense, for the fate of the man she had so arbitrarily called to her aid, to make the hope effective in the rescue of her child. Poor little Archie! It was difficult indeed to think of him as dead! Gladys felt that she must find some way to sustain Lillian.

"Why, what are we thinking of?" she exclaimed. "Julian Bayne will be half frozen when he gets here. His room must be prepared—something hot to drink, and something to eat. No, Lillian, you *mustn't* ring the bell! The servants have been at work all day, and have earned their rest. We will just take this matter in charge ourselves. You go to the kitchen and see if the fire has kept in the range. If not, make it up. You will find wood at hand, laid ready for getting breakfast. Mrs. Marable, look in the refrigerator, please, and see what there is for him to eat. I will get out the bed linen and blankets, for he will be exhausted, no doubt."

But when she stood alone in the upper hall, at the door of the vacant guest-room, the candle in her hand, Gladys had a sudden keen intimation that she was herself but human, endowed with muscles susceptible of

overstrain, with nerves of sensitive fibre, with instincts importunate with the cry of self-interest, with impulses toward collapse, tears, terrors, anxieties—all in revolt against the sedulous constraint of will. The light of the candle in her hand, thrown upward on her face, showed the fictitious animation that she had sustained vanish out of its lineaments, as life itself might flicker to extinction, and leave a mask like death. It was a tragic mask. Her lids fell over her hopeless eyes; her lips drooped; the flush of her splendid florid beauty had faded as if it had never bloomed. She discovered that she was gasping in the dull, chill air. She leaned against the balustrade of the stairs, limp, inert, as if every impetus of vigor had deserted her. But it would never do for her to faint, she reflected. She must act for others, with just judgment, with foresight, with effective housewifely care, and with good heart and courage.

"I must think for the rest—as Ned would, if he were here," she said, still half fainting. She got the window open hard by, and a vagrant gust of the cold air stung her face as with a lash. But she was out of the direct course of the blast as it came shrilly fluttering from over the roof, and she could maintain her position, although she could scarcely breathe in the keen frigidity. Snow had fallen, deeper than she had ever seen. With it had come that strange quality of visibility that seems to appertain to a sheeted world like an inherent luminosity; or was it perchance some vague diffusion of light from the clouded moon, skulking affrighted somewhere in the grim and sullen purlieus of the sky? She listened, thinking to hear the stir of horses in their stalls, some sound from barn or byre, the wakening of the restless poultry, all snugly housed; but the somnolent stillness of the muffled earth continued unbroken, and only the frantic wind screamed and howled and wailed.

One sombre hour succeeded another as if the succession were endless. Long, long before there was the sense of a boreal dawn in the chill darkness, the house stood in readiness, though none came. The servants were presently astir; the fires were freshly flaring, the furniture rearranged. In view of the freeze, the gardener had seen fit to cut all the blooms in the pit to save them from blight, and a great silver bowl on the table in the hall, and the vases in the library, were filled with exotics. The fragrance

oppressed Lillian in some subtle sort; the spirit of the scene was so alien to the idea of festival or function; the dim gaunt morning was of so funereal an aspect; the gathering of household companions, gloomy, silent, expectant, into one room duly set in order, was so suggestive, that the array of flowers and the heavy perfumed air gave the final significant impression of douleur and doom.

At the first glimpse of dawn, Gladys had despatched a groom, well mounted and with a fresh led horse, out on the road to descry perchance some approach of Mr. Bayne, to afford assistance if this were needed. Hours went by, and still there was no news, no return of the messenger. Now and again Mrs. Briscoe sought to exchange a word with Mrs. Marable to relieve the tension of the situation; but the elder lady was flabby with fatigue; her altruistic capabilities had been tried to the utmost in this long vigil and painful excitement, which were indeed unmeet for her age and failing strength. She did not enter into the troubled prevision of Gladys, who had been furtively watching a strange absorption that was growing in Lillian's manner, a fevered light in her eyes. Suddenly, as if in response to a summons, Lillian rose, and, standing tall and erect in her long black dress, she spoke in a voice that seemed not her own, so assured, so strong, monotonous yet distinct.

"You cruel woman," she said, as if impersonally. But Gladys perceived in a moment that she had in mind her own arraignment, as if another were taxing her with a misdeed. "In this bitter black night, in this furious ice-storm, and you did not forbid it! You did not explain your need. You summoned him to risk his life, *his life*, that he might something the earlier offer his fallible opinion, perhaps worth no more than that bit of stone! You would not wait till daylight—you would not wait one hour. You cruel woman! Already you had the best of him, his heart, to throw away at a word as if it were naught—merely a plaything, a tawdry gaud—the best and tenderest and noblest heart that ever beat!—and for a silly quarrel, and for your peevish vanity, you consented to humiliate his honest pride and to hold him up to ridicule, jilted on his wedding-day. And but that he is so brave and genuine and fine of fibre, he would never have had the courage to hold up his head again. But even the basest of the yokels and groundlings could

not make merry over the cozening of so noble a gentleman! And now, because of your faith in his magnanimity, you summon him forth in an ice-storm at your 'utmost need,' all careless of his suffering, at the risk of his life. And he, fool that he is, without even a question, regardless of all that has come and gone—or, more foolish still, forgiving and forgetting—obeys your behest! You have taken all he had left, you cruel woman!—his life, this time, his life, *his life!*"

Gladys literally cowered under this storm of words, as if the pitiless hail had beaten on her own head. But as Lillian, her arms outstretched, her voice broken into shrill cries, rushed to the door, Mrs. Briscoe sprang forward, caught her arm, and sought to detain her. "What are you going to do, Lillian?"

"To raise the country-side, the county—to search for all that the storm and the floods and that baneful woman have left of him!"

She broke away hastily from the restraining clutch of Gladys, who, following her closely, saw her reel backward as if in shrinking affright from a shadowy figure standing in the dim hall.

X.

Julian Bayne, his long coat covered with snow and jingling with icicles, his chill face scarlet with cold, his lips emitting a cloud of visible breath, his eyes intent beneath the brim of his frost-rimmed hat, stood gazing as if petrified by the strange scene he had witnessed just enacted within, the strange words he had overheard.

"What is all this?" he cried at length. "Did you think I couldn't make it?" Then to Lillian specially, as he took her hand, "Am I late?" he asked solicitously. "I made all the speed I could. I hope I haven't killed the horse."

He glanced over his shoulder through the open door, where he could see a bit of the snowy drive, on which the groom was slowly leading the animal, heavily blanketed, up and down before taking him to the stable. Although sobbing now and again from the stress of his exertions, the horse had evidently sustained no permanent injury.

"I came instantly," Julian repeated. "What is it?"

"Nothing!" cried Lillian hysterically, clinging to his arm. "They all think it is *nothing*—nothing at all."

He stared at her somewhat grimly, though evidently mystified.

"Come," he said, "let us get at the rights of this. And I'd really like a glimpse of the fire—I'm half frozen."

He threw off his overcoat, stiffened with the ice, and strode into the library toward the blazing hearth. Mrs. Marable was suddenly roused to

remember the decoction that she herself had prepared, and put the glass into his hand. But he took only a single swallow, gazing in absorption at Gladys, who had undertaken to detail the discovery of the stone in the pocket of the little red coat, and the theory that Mrs. Royston had desperately based upon it. Lillian herself was hanging her head in shame for her folly, that she should for this fantastic illusion have inflicted on this man of all men, on whom indeed she had least claim, the agony he had endured, and the peril of his life.

She could never have described the overwhelming tumult of her heart when he lifted his head at the end of the story, with a look of grave and intent pondering.

"This stone is the efflorescence of a limestone cavern, given to him, no doubt, but when and where? And how is it that you did not know it, knowing his every thought?" he said in a tense, excited voice.

Lillian was on her feet again in an instant, her eyes shining, her cheeks flushed, her voice trembling. "Oh, Julian, you think it is possible that Archie is alive! Oh, I believe it! I believe it! And the thought is like the elixir of life, like the ecstasy of heaven!"

He made no direct reply, but turned hastily to go to the telephone. "You cannot afford to lose any chance, even the most remote. The county officers must be notified, advertisements sent out, and offers of reward. There is not a moment to be wasted."

"But Gladys thinks it is a folly," cried Lillian, following him into the hall, eager to test the negative view, fearful of her trembling hope; "and my aunt is troubled for my sanity."

As he waited for the line, which was "busy," he turned and sternly surveyed her. "Why should you defer to their views, Lillian? Haven't you yet had enough of ordering your life by the standards of others? Be yourself—if you have any identity left at this late day. Rely on your own judgment, consult your own intuitions, rest on your own sense of right and justice and conscience, and you cannot err!"

"Oh, Julian!" she exclaimed in tearful amaze. "How can you say that of me—of *me*?"

He looked startled for one moment, as if he had spoken inadvertently, for her guidance, his inmost thought, without regard to its personal significance. Then, with a rising flush and a conscious eye, he sought to laugh off the episode. "Oh, well, I didn't *mean* it, you know! Only the compliments of the newly arrived." And as the bell jingled he took down the receiver with obvious relief.

In the presence of poor Gladys, for whose calamity there could be no prospect of alleviation, the subject of Briscoe's death and the child's abduction as connected therewith could not be discussed in all its bearings. Only Mrs. Marable joined Lillian in the library that afternoon when the sheriff arrived, and the mother's eager hopes were strengthened to note the serious importance he attached to the discovery of the bit of stone in the pocket of the little red coat. He was obviously nettled that it should have remained there unnoted while the garment was in his keeping, but Lillian tactfully exhibited the unusual inner pocket in the facing, the "shy pocket," which, thus located, offered some excuse for the failure to find earlier its contents. With Julian Bayne's suggestions, the sheriff presently hammered out a theory very closely related to the truth. The visit of the revenue officer was detailed by Bayne, and considered significant, the more since it began to be evident that Briscoe was murdered, and in his case a motive for so perilous a deed was wholly lacking. The stone lily in the child's pocket made it evident that he himself had been in the moonshiners' cavern, the only one known to the vicinity, or that the stone had been given to him by some frequenter of that den—hardly to be supposed previous to the catastrophe. In fact, the sheriff declared that he had reason to believe that the child was wearing the coat at the time of the tragedy, and thus it could not have been cast loosely from the vehicle at the moment when the mare had fallen from the bluff to the depths below. It had been restored to the locality in a clumsy effort to prove the child's death.

The officer was a big, burly man, handsome in his way, his ponderosity suggesting a formidable development of muscle rather than fat. His manner

was as weighty as his appearance. He seemed as if he might have been manufactured in a tobacco factory, so was the whole man permeated by nicotian odors of various sorts, but he politely declined to smoke during the long and wearing consultation, even with the permission of the ladies present, and stowed away in his breast pocket the cigars that Bayne pressed upon him, as he remarked, for reference at a moment of greater leisure. Bolt upright, a heavy hand on either big-boned knee, his shaven jowl drooping in fleshy folds over his high stiff collar, he sat gazing into the fire with round, small, gray, bullet-like eyes, while the top of his bald head grew pink and shining with warmth. He had a loud, countrified voice in his normal speech, that gave an intimation of a habit of hallooing to hounds in a fox-chase, or calling the cattle on a thousand hills, but it had sunk to a mysterious undertone when he next spoke, expressive of the importance of the disclosure he was about to make.

A few days previous, he said, he had chanced to arrest an Irish mechanic who, during the season, had been employed at the neighboring hotel in replacing some plaster that had fallen by reason of leakage. Since then, a hard drinking man, he had been idly loafing, occasionally jobbing, about the country, but the offence charged was that of being concerned in a wholesale dynamiting of fish in the Tennessee River some months ago. The man protested violently against his arrest, being unable to procure bail, and declared he could prove an alibi but for fear that a worse thing befall him. This singular statement so stimulated the officer's curiosity that his craft was enlisted to elicit the whole story. Little by little he secured its details. It seemed that on the day when the fish were dynamited contrary to law, the Irishman was some thirty miles distant from the spot—the day of the Briscoe tragedy. He believed that he was the last man who had seen Briscoe alive—unless indeed he were done to death. He was afoot, walking in the county road, not more than two miles from the vacant hotel, when he saw a dog-cart coming like the wind toward him. The gentleman, driving a splendid mare, checked his speed on catching sight of him, and called out to him. Upon approaching, he recognized Mr. Briscoe, whom he had often seen when at work at the neighboring hotel. On this occasion Mr. Briscoe asked him to hold the mare while he slipped a coat on the little boy whom he had in the dog-cart with him—a red coat it was—for it took all he knew

to drive the mare with both hands. And the Irishman declared it took all *he* knew to hold the mare for the single minute required to slip the child into the coat. Twice the plunging animal lifted him off his feet as he swung to the bit. But the gentleman did not forget to pay him royally. Mr. Briscoe tossed him a dollar, and then, with "the little bye in his red coat" sitting on the floor of the vehicle, he was off like a cyclone and out of sight in a moment. Almost immediately afterward the Irishman heard the sharp crack of a rifle, and a tumultuous crash, as of some heavy fall into the depths of the valley. To his mind, the sound of the weapon intimated some catastrophe, and he said nothing at the time as to his meeting with Mr. Briscoe. That circumstance seemed to him of no importance. He was afraid of being numbered among the suspects if any evil deed had been done. He heard the searching parties out all night, and it was a terrible sound! "It was too aisy fur a poor man to be laid by the heels fur a job he niver done, bedad, as was the case at present." He permitted himself, however, to be persuaded to let a charge of vagrancy be entered against him and go to jail, really to be held as a witness in the event of more developments in the Briscoe case; for the authorities desired that no arrests in that connection should be made public until the significance of the fact that at the time of the tragedy the child was wearing the coat—afterward found hanging loose, without a rent or a blemish, on the tree in the valley—should be fully exploited. If it were indeed a direful instance of murder and abduction, as the sheriff now believed, he wished the miscreants to rest unwitting of the activity of the officers and the menace of discovery.

"But it seems a pity for the poor innocent Irishman to have to stay in jail. How good of him to consent!" exclaimed Mrs. Marable pathetically.

The sheriff was all unacclimated to the suave altruism of fashionable circles. His literal eyebrows went up to an angle of forty-five degrees; he turned his belittling eyes on Mrs. Marable, as if she were a very inconsiderable species of wren, suddenly developing a capacity for disproportionate mischief. "Not at all, madam," he made haste to say. "He can be legally held for a witness, lest he get away and out of reach of a subpœna. It is the right of the State, and of Mrs. Briscoe as well, who will

doubtless join the public prosecution. We are asking nothing of nobody, and taking nothing off nobody, neither."

"But I should like," said Lillian, "to arrange that he shall suffer no hardship. I shall be happy to defray any expense to make him thoroughly comfortable."

The sheriff looked down on feminine intelligence. The law was exclusively man's affair. He made it and administered it. The officer had seldom known women to intrude into it, save to get the worst of it. Its minister had an air of burly ridicule that trenched on contempt as he broke into a laugh of great relish.

"The county can accommodate its boarders without your help, Mrs. Royston. Much obliged, all the same. He ain't no nice customer. He is mighty lucky to be sure of his grub and fire and shelter this tough winter. He ain't got to do any work. He has the freedom of the yard and the halls and the office at all hours. No, madam, he is as snug as a bug in a rug. You'll have a chance to spend all the money that you care to put up in this affair, if I'm not mightily mistaken. No use in wastin' any of it on Micky."

The fact that the child had not been wearing the coat when starting on the drive, but had been seen in it immediately previous to the catastrophe; that it should be subsequently found and not on his body, of which no trace had ever been discovered, went far to convince the authorities that the garment had been restored to the locality afterward in pursuance of an effort to prove his death. They had begun to believe that the child had in some manner escaped at the time of the tragedy, and was now held in retreat lest he disclose incriminating evidence. But it was a barren triumph of logic. They realized that any demand of the reward offered must needs bring a counter inquiry concerning the facts of Briscoe's murder, and therefore from the beginning they had little hope that any good result would ensue from the wide publicity and the extended search that his mother and her adviser had inaugurated. The child remained as if caught up in the clouds. Though extravagant offers of reward for any information concerning him, as well as for his ultimate recovery, were scattered broadcast throughout the country;

though every clue, however fantastic or tenuous or obviously fraudulent, was as cautiously examined as if it really held the nucleus of discovery; though fakers and cheats of preposterous sorts harassed the proceedings and wrought many malevolent bits of mischief in disappointed revenge, being treated with a leniency which would suffer aught, all, rather than clog any vague chance of a revelation of the seclusion of the lost child—there seemed no prospect, no hope.

It had been Lillian's instinct to continue in the place where the child had been last seen—she felt a fictitious sense of proximity in the familiar localities that had known him. But with the exigencies of the systematic effort for his recovery she returned to her own home in the city of Glaston, whither Gladys accompanied her, as being more accessible when her presence in the search was required.

Julian Bayne gave himself wholly to the effort. He travelled here and there, pervading the country like some spirit of unrest, threading the intricacies of city slums, north, south, east, and west, personally interviewing all manner of loathly creatures, damaged by vice and sloth and ignorance and crime almost out of all semblance of humanity. He had not dreamed that such beings existed upon the earth. Sometimes, unaware of the circumstances and the danger they courted, they caught up a child wherewith to deceive him, if it might be, generally a pitiable, puny thing, swarming with vermin, half famished and forlorn. But Julian was dubious how ill treatment and lack of nourishment might have transformed the heir of the proud Archibald Royston, and in each instance he summoned Lillian through long journeys, tortured with alternations of hope and suspense, to inspect the waif. All without avail. True, she invariably bettered the condition of the little creature, thus fortunate in attracting her notice, purveying clothes and food, and paying a good round price for the consent of its keepers to place it in some orphanage or other juvenile refuge. So exhaustive, so judicious, so tireless, was the search, so rich the reward, that as time went by and no result ensued, the authorities became more than ever convinced that since the child's abduction was complicated with the more desperate crime of Briscoe's murder, this effectually precluded any attempt at his restoration by the kidnappers; for indeed, to those who knew the facts,

the large reward was obviously the price of a halter. As this theory gained strength, their ardor in the search declined, and Lillian and Julian realized that more than ever the child's restoration would depend on their individual exertions.

The effort came to seem an obsession on the part of Bayne. He was worn and weary; his business interest languished, and his friends, remonstrating in vain, regarded it as the culminating injury to his life and prospects already wrought by the influence of this woman.

Indeed, one of the chief difficulties of the continuance of the enterprise was the resistance they must needs maintain to the remonstrance of friends. This finally came to be so urgent that it even involved an effort to circumscribe the futile activities. In view of the provisions of Mr. Royston's will no portion of the minor's estate could be used to defray the extremely lavish expenses that the thoroughness and extent of the search involved. All the large disbursements of money came from Mrs. Royston's own share of her husband's fortune. This brought her uncle, Mr. Marable, into the discussion. Her resources would not sustain these heavy draughts, he urged. In case the child remained perdu, to be sure, and the legal presumption of his death obtain by reason of the lapse of time, his estate would by the terms of the will vest in her, and thus financially all might be well. But on the contrary, should he be found in the course of time, this wild extravagance would result in bankrupting her. She thought it necessary to keep detectives in constant pay to hold their efforts and interest to the search, even though the ultimate rich reward were dangled continually before their eyes. The flamboyant advertisements, the widespread publicity over half the world, had involved commensurate cost. Large sums had been disbursed for information merely that was rooted in error and bore only disappointment. Then, too, were the inevitable mistakes, the fakes and cheats, and the expenses of a score of agents effecting nothing. Mr. Marable rubbed the wisps of gray hair on either side of his corrugated temples, and wrung his solvent hands in financial anguish.

He sought in this cause to take advantage of Bayne's influence with Lillian, and made an effort to induce him to remonstrate with her. They

were in the library of her house in Glaston, looking over some papers together, a real estate mortgage, in fact, by which Lillian intended to raise a large sum for more unrestricted use in the extension of the search.

Bayne sat at the table, scanning the money-lender's memoranda, his experience as a broker having developed a keen scent for any untoward or mischievous detail.

"But in seeking the wisest methods of economy, the essential opportunity may escape her. While she is financiering, the child may die in the hands of his abductors, or he may succumb to hardship otherwise—be disfigured by disease or disabled by exposure, or slaughtered, so to speak, mentally or morally, or spirited away and be heard of never again. No, no," Bayne declared definitely; "I could not advise her to consider money in this connection."

Mr. Marable could ill brook contradiction or dissent. He quivered with more than the infirmities of age as he stood by the table, supporting himself on his cane.

"You don't reflect, Mr. Bayne, that though she gets the child's estate if he dies or continues lost—if he lives and this expenditure goes on, she will be penniless—you don't realize that. She will be a poor woman—she will have nothing left of her provision as a widow."

"Well, that suits me to the ground," Bayne retorted unexpectedly. "I shall be glad to profit as little as possible by Mr. Royston's property."

The notary public, come to take Mrs. Royston's acknowledgment, was announced at the moment, and the two gentlemen, still wrangling, went into the reception room to meet him. Mrs. Marable, her eternal Battenberg in her hands, looked up through the meshes of a perplexity, as visible as if it were a veritable network, at Gladys, who was standing in the recess of the bay-window, a book in her hand.

"I didn't understand that remark of Mr. Bayne's as to the poverty of Mr. Royston's widow," the old lady submitted.

Gladys, the match-maker, laughed delightedly. "*I did!*" she cried triumphantly.

As she went out of the room, she encountered Lillian in the hall, summoned to sign and acknowledge the papers. The flush on the cheek of Gladys, the triumph in her eyes, the laugh in the curves of her beautiful lips, arrested Mrs. Royston's attention. "What are you laughing about?" she asked, in a sort of plaintive wonderment.

"About something that Julian said just now."

"What was it?" Lillian queried, still bewildered in a sort.

The flush deepened on Mrs. Briscoe's cheek, her eyes were full of light, her voice chimed with a sort of secret joy.

"I will not tell you!" she cried, and, still smiling, she floated down the hall, her book in her hand.

Lillian stood motionless in amaze. Something that Julian Bayne had said to work this metamorphosis! Something that she must not hear, must not know! The look in her friend's eyes, the tone of her voice, stayed with Lillian in every moment of surcease of torment for the child's rescue, and worked their own mission of distress. Had she thought indeed that she could hold Julian Bayne's heart through all vicissitudes of weal and woe, of time and change? She had of her own free choice thrown it away once as a thing of no worth. She had never justified her course, or thought it could be deemed admirable as an exponent of her character. And here she was constantly contrasted with a woman who had no fault, no foible, who was generous, whole-souled, splendid, and beautiful, already with a strong hold on his affections, close to him, the widow of his cousin who was always the friend of his heart. And so sweet she was, so unconscious of any thought of rivalry! That night she came late to Lillian's room to say good-night once more, to counsel hope, and urge an effort to sleep. Even when she seemed gone at last, she opened the door again to blow a kiss and smile anew. When the door had closed finally Lillian, standing near the mirror, could but note the difference. She was ghastly in her gay and modish attire, for

she had instantly laid aside her mourning for the death of the boy, as an affront to her faith that he still lived. The sharp tooth of suspense had eaten into her capacities of endurance; her hopes preyed upon her in their keen, fictitious exaltations; the alternations of despair brought her to the brink of the grave. She was reduced almost to a shadow; she would go about the affair—she would entertain no other—with a sort of jerking, spasmodic activity as unlike muscular energy as if she were an automaton. She had no rest in her sleep, and would scream and cry out in weird accents at intervals, and dream such dreams! She would blanch when questioned, and close her lips fast, and never a word escaped them of what these visions of terror might be.

XI.

How the mother-heart would have rejoiced could Lillian have divined that her child was well and happy, though affectionate in new ties while she languished in his absence! Archie had begun to adore the old Indian fortune-teller who cuddled and coddled him in loving delight. She lived for a time in grievous fear of his departure, but when no news came of the men who had placed him there, and the date fixed for their return passed without event, she began to gloat on the possibility of desertion. She tried all her ancient savage spells and methods of forecast—many strange jugglings with terrapin shells and white beads and pointed sticks and the aspect of the decoction of magic herbs. With fervor, she gave herself also to her pagan invocations to those spirits of Zootheism and personified elements of Nature, so real even to the modern Cherokee, esteemed so potent in the ordering of human affairs. Suddenly her hope glowed into triumph! She had a fantastic conviction that the child was bound fast. The signs intimated that the great mystic Red Spider, *Kananiski gigage*, had woven his unseen web about the boy, and he could not escape from those constraining meshes. As to the men—she concluded that they were blown away somewhere. The wind had attended to that little matter. "*Agaluga Hegwa! Atigale yata tsutu negliga*," she exclaimed in grateful rapture. ("Oh, great Whirlwind! By you they must have been scattered.")

Happiness had long held aloof. She was of the poorest of the tribe; childless, for many years; a widow; she suffered much from rheumatism; she was slowly going blind; she was deemed unlucky and avoided. For more than once of late years she had in important crises predicted disaster, and this prophecy, by fortuitous circumstances, had been fulfilled; thus those to whom a deceitful hope is preferable to a warning of trouble sought

by fleeing the oracle to elude the misfortune. Being esteemed a witch, and associated with dark dealings and prone to catastrophe, she lived in peculiar solitude, and the two spent the long months of the winter within the cabin together, while the mountain snows lay heavy on the eaves and the mountain winds beat and gibed at the door. Great icicles hung from the dark fissures of the crags; frosty scintillations tipped the fibres of the pines; wolves were a-prowl—sometimes their blood-curdling howls from afar penetrated to the hut where the ill-assorted companions sat together in the red glow of the fire, and roasted their sweet potatoes and apples on the hearth, and cracked nuts to pound into the rich paste affected by the Cherokees, and drank the bland "hominy-water," and gazed happily into each other's eyes, despite their distance apart at the two termini of life, the beginning and the end.

As she could speak no English, yet they must needs find a medium of exchange for their valuable views, she tried to teach him to speak Cherokee. He was a bird, her little bird, she told him by signs, and his name was *Tsiskwa*. This she repeated again and again in the velvet-soft fluting of her voice. But no! he revolted. His name was Archie Royston, he declaimed proudly. He soon became the monarch of this poor hearth, and he deported himself in royal fashion.

"Oo tan't talk," he said patronizingly to her one day, after listening in futile seriousness to her unintelligible jargon. Forthwith he essayed to teach her to speak English, and, humoring his every freak, she sought to profit. She would fix intent eyes upon him and turn her head askew to listen heedfully while she lisped after his lisping exposition of "Archie Royston." He grew heady with his sense of erudition. He would fairly roll on the puncheon floor in the vainglory of his delight when she identified chair and fire and bed and door by their accurate English names. Sometimes, in a surge of emotion, hardly gratitude or a sense of comfort, neither trust nor hope, but the sheer joy of love, the child would come at her in a tumultuous rush, cast himself in her arms, and cover her face with kisses—the face that had at first so terrified him, that was so typical of cruelty and craft and repellent pride. Then as they nestled together they would repeat in concert—poor woman! perhaps she thought it a mystic invocation charged with

some potent power of prayer or magic—"Ding-dong-bell!" and the comparative biographies of little Johnny Green and little Johnny Stout, and the vicissitudes of the poor pussycat submitted to their diverse ministrations. He was wont to sing for her also, albeit tunelessly, and as he sat blond and roseate and gay, warbling after his fashion on the hearth, her clouded old eyes were relumed with a radiance that came from within and was independent of the prosaic light of day. His favorite ditty was an old nursery rhyme in which the name "Pretty Polly Hopkins" occurs with flattering iteration, and he began to apply it to her, for he had come to think her very beautiful—such is the gracious power of love! And while the snow was flying, and the sleet and hail tinkled on the batten shutter, and the draughts bleated and whined in the crevices, he made the rafters ring:

"Pretty, pretty Polly Hopkins,
How de do?—how de do?"

"None the better, Tommy Tompkins,
For seeing you, for seeing you!"

"Polly, I've been to France
And there spent all my cash."

"More the fool for you, Mister Tompkins,
Fool for you, fool for you!"

It was a valuable course in linguistics for the inmates of the cabin, and Archie Royston was far more intelligible and skilled in expressing himself when that door, that had been closed on the keen blast, was opened to let in the suave spring sunshine and the soft freshness of the mountain air.

XII.

With the return of fine weather the work of railroad construction on the extension of the G. T. & C. line began to be pressed forward with eager alacrity. Indeed, it had languished only when the ground was deeply covered with snow or locked so fast in the immobile freeze that steel and iron could not penetrate it. The work had been persistently pushed at practicable intervals, whenever the labor could be constrained to it. Possibly this urgency had no ill results except in one or two individual cases. The sons of toil are indurated to hardship, and most of the gang were brawny Irish ditchers. Jubal Clenk, already outworn with age and ill nourished throughout a meagre life, unaccustomed, too, to exposure to the elements (for the industry of moonshining is a sheltered and well-warmed business), was the only notable collapse. He began by querulously demanding of anyone who would listen to him what he himself could mean by having an "out-dacious pain" under his shoulder-blade. "I feel like I hev been knifed, that's whut!" he would declare. This symptom was presently succeeded by a "misery in his breast-bone," and a racking cough seemed likely to shake to pieces his old skeleton, growing daily more perceptible under his dry, shrivelled skin. A fever shortly set in, but it proved of scanty interest to the local physician, when called by the boss of the construction gang to look in upon him, in one of the rickety shacks which housed the force of laborers, and which was his temporary home.

"There's no show for him," the doctor laconically remarked. "Lungs, heart, throat, all have got into the game. You had better get rid of him—he will never be of any use again."

"Throw him over the bluff, eh?" the jolly, portly boss asked with a twinkling eye. "We ain't much on transportation yet."

"Well, it's no great matter. He'll provide his own transportation before long;" and the physician stepped into his buggy with an air of finality.

The old man had, however, unsuspected reserves of vitality. He crept out into the sunshine again, basking in the vernal warmth with a sense of luxury, and entering into the gossip of the ditchers with an unwonted mental activity and garrulity.

One day—one signal day—as he sat clumped up on a pile of timber destined for railroad ties, his arms hugging his knees, his eyes feverishly bright and hollow, a personal interest in his condition was developed in the minds of his old pals and fellow-laborers, Drann and Holvey, albeit of no humane tendency. It was the nooning hour, and the men at their limited leisure lay in the sun on the piles of lumber, like lizards.

"Gee!" exclaimed one burly fellow, rising on his elbow. "How I'd like ter git my paw on that reward—five thousand dollars for any information!"

"I'm in fur money ez sure ez ye air born! All signs favor," exclaimed old Clenk eagerly. "I dream about money mighty nigh every night. Paid in ter me—chink—chink—I allus takes it in gold. Goin' ter bed is the same ter me that goin' ter the bank is ter most folks."

His interpolations into the conversation usually failed to secure even a contemptuous rebuff; they passed as if unheard. But such is the coercive power of gold, albeit in the abstract, that this tenuous vision of wealth had its fascination. The brawny workman held the newspaper aside to look curiously over at the piteous wreck, as the old ragamuffin grinned and giggled in joyous retrospect, then began to read again the advertisement: "Twenty-five thousand dollars in cash if the information leads to the recovery of the child."

"Do they head them advertisements '*Suckers, Attention*'?" asked one of the men who labored under the disadvantage of illiteracy. The scraps read

aloud from the papers were his only source of information as to their contents. "They *oughter* say 'Suckers, Attention,' for they don't even tell whut the kid looks like. I wouldn't know him from Adam ef I wuz ter pass him in the road."

"But they *do* tell what he looks like!" exclaimed the reader. "Here it all is: blue eyes, golden hair, fair skin, rosy cheeks——"

"Cutest leetle trick!" exclaimed old Clenk, with a reminiscent smile at the image thus conjured up.

The words passed unnoticed save by Drann and Holvey. They exchanged one glance of consternation, and the fancied security in which they had dwelt, as fragile as a crystal sphere, was shattered in an instant. The old man was broken by his illness, his recent hardships. He was verging on his dotage. His senile folly might well cost them their lives or liberty.

Indeed, as the description progressed, detailing the child's attire even to his red shoes, the old fellow's fingers were toying fatuously with one of them in his deep coat pocket among the loose tobacco that fed his pipe. "That don't half ekal *him*," he broke out suddenly. "Never war sech another delightful leetle creeter."

A moment of stunned amazement supervened among the group.

"Why, say, old Noah, did you ever see that kid?" at length demanded the reader, with a keen look of suspicion.

It was the inimical expression, rather than a definite consciousness of self-betrayal, that sent the old man's drifting mind back to its moorings. "Jes' listenin' ter that beautiful readin'," he grinned, his long yellow tobacco-stained teeth all bare in a facial contortion that essayed a smile, his distended lips almost failing of articulation. "Them was fine clothes sure on that lovely child."

The flamboyant advertisements had often before been read aloud in the construction camp, and the matter might have passed as the half-fevered

babblings of a sick old man, but for that look of stultified comment, of anguished foreboding, that was interchanged between the two accomplices. Only one man, however, had the keen observation to catch that fleeting signal, and the enterprise to seek to interpret it.

The next day, when Clenk did not reappear, this man quietly slipped to the shack where the three lived together. There was a padlock knocking in the wind on the flimsy door. This said as plain as speech that there was no one within. Ordinarily this would have precluded all question, all entrance. But the intruder was seeking a pot of gold, and informed by a strong suspicion. With one effort of his brawny hands, he pulled loose from the top first the strap of one of the broad upright boards that formed the walls, then the board itself. He turned sideways and slipped his bulk through the aperture, the board swinging elastically back into place.

There was a stove in the squalid little apartment, instead of the open fires common to the region. It was masked in a dusky twilight, but as his eyes became accustomed to the obscurity and the disorder, his suspicion exhaled, and a heavy sense of disappointment clogged his activities like a ball and chain.

There in his bunk lay Clenk, his eyes shining with the light of fever, his illness affording an obvious explanation of the precaution of his comrades in locking the door while they were away at work, at the limits of the construction line, to protect him from molestation by man or beast.

Nevertheless, the intruder made an effort to hold his theory together. He approached the bunk, and with an insidious craft sought to draw the old man out. But Clenk was now on his guard. His comrades had bitterly upbraided him with his self-betrayal, that indeed threatened the safety of all. In fact, their courage was so reduced by the untoward episode that he more than suspected they intended to flee the region, and he was disposed to give the fact that he was left cooped up here under lock and key no such humane interpretation as the intruder had placed upon it. They had left him to starve, if not discovered, while they sought to compass a safe distance. At all events, he was so broken in mind and body that his story was more than

likely to be discredited, unless their own clumsy denials and guilty faces were in evidence to confirm its truth.

Now his garrulity had vanished; he licked his thin lips ever and anon, and looked up over the folds of the red blanket drawn to the chin with a bright, inscrutable eye and said nothing. His weakness was so great that the policy of lying silent and supine, rather than exert his failing powers, was commended by his inclination as well as his prudence.

Though it was in vain that the spy plied him with question and suggestion, one phrase was like a galvanic current to this inert atrophy of muscle and mind. "Look here, old man," the intruder said at length, baffled and in despair, "you mark my words!" The brawny form had come close in the shadow and towered over the recumbent and helpless creature, speaking impressively through his set teeth. "You mark my words: your pals are going to do you."

A quiver of patent apprehension ran over the dimly descried face, and under the blanket the limbs writhed feebly; but Clenk's resolution held firm, and with a curse, balked and lowering, the man stepped out at the place where he had effected his entrance at the moment when his scheme might have borne fruit.

For old Clenk had struggled up in bed. This threat was true. He had vaguely suspected the fact, but in the words of another his fear had an added urgency. He had betrayed his accomplices, he had betrayed himself. Doubtless it was a race between them as to who could soonest seize the opportunity to turn State's evidence.

And why should he fear the law more than another? As matters stood, he would be left to bear the brunt of its vengeance, while the active perpetrator of the deed escaped, and the accessories sought shelter beneath the ægis of the law itself.

He was not long in reasoning it out. The strength of his resolution imparted a fictitious vigor to his muscles. While unaided he could never have stirred the heavy board, his efforts made it give, loosened as it had

already been, so that his thin, wiry body could slip between its edge and the rest of the wall. He had one moment of intense terror lest it slip elastically back and hold him pinioned there, but a convulsive struggle sufficed, and he stepped out, exhausted and trembling, into the gathering dusk, a lowering assemblage of darkling mountains, and at a little distance the shacks of the construction gang. The doors were aflame with flickering lights from within, and the unctuous smell of frying pork was on the air. It was well for his enterprise that at the critical moment the camp was discussing its well-earned supper and had scant attention to bestow on other interests.

An hour later the men on a hand-car, whizzing down the portion of the track that was sufficiently complete for this mode of progression, gave little heed that a workman from the camp was stealing a ride, sitting in a huddled clump, his feet dangling. Whether discharged or in the execution of some commission for the construction boss, they did not even canvass. Far too early it was for the question of rates or passes to vex the matter of transportation. They did not even mark when he dropped off, for the hand-car ran into the yards at the terminus, carrying only its own crew.

Clenk was equally fortunate in creeping into an empty freight here unobserved, and when it was uncoupled and the engine swept into the round-house in the city of Glaston, it was verging again toward sunset, and he was hundreds of miles from his starting-point.

Some monitions of craft were vaguely astir in his dull old brain. He had resolved to throw himself on the mercy of the mother, ere he trusted himself to the clutches of the law. He winced from the mere thought of those sharp claws of justice, but he promised himself that he would be swift. He could not say how Holvey and Drann might secure precedence of him. They had gotten the start, and they might hold it. But if he should tell the mother where they had left the child, he would surely have a friend at court. When he was in the street he walked without hesitation up to the first responsible-looking man he met, and, showing him the advertisement in the newspaper, boldly asked to be directed to the house of that lady.

So dull he was, so unaccustomed to blocks and turnings and city squares, that after an interval of futile explanation the stranger turned out of his way and walked a short distance with him. All the world had heard of the tragedy and the mysterious disappearance of the child, and, although suspecting a fake, even a casual stranger would not disregard a chance of aid.

It was well that the distance was not great, for even his excitement was hardly adequate to sustain Clenk's failing physique. When the old mountaineer paused on the concrete sidewalk to which the spacious grounds of the suburban residence sloped, he looked about with disfavor. "Can't see the house fur the trees," he muttered, for the great oaks, accounted so magnificent an appurtenance in Glaston, were to him the commonest incident of entourage, and a bare door-yard, peeled of grass, a far more significant token of sophistication. As he approached, however, the stately mansion presently appeared, situated on a considerable eminence, and with long flights of stone steps from a portico, enriched with Corinthian columns, and from two successive terraces at some little distance in front. Here were tall stone vases on either hand, and beside one of these at the lower terrace two ladies had paused, waiting, descrying his approach. One was gowned in deep black, sad of aspect, though serene, and very beautiful. The other wore a dress all of sheer white embroideries, with knots of brocaded lilac ribbon, festival of intimation, but her face was thin, wan, worn, tortured out of all semblance of calm or cheer. He came falteringly toward them, and stood for a moment uncertain. Then—for the scope of his cultivation did not include the civility of lifting his hat—he said, "Which of ye two wimin hev los' a child?" His voice was quavering, even sympathetic, and very gentle as he looked at them.

"I have lost my little son!" cried Lillian in a keen, strained tone, agonized anew by the mere mention of the catastrophe. "Have you any information about him? I am ready to pay for it." She had been warned a hundred times that eagerness in proffering money, in making the reward so obviously sure, was not conducive to accelerating the disclosure, bringing into play the innate perversity of human nature, and a desire to trade on the situation and

increase the gains; yet try as she might, she could not refrain from invoking always the cogent aid of gold.

"I ain't so particular 'bout the money, lady. I got su'thin' on my mind. I be bent on makin' it square with the law. An' then, too, that leetle Archie air a mighty gamesome leetle trick." He laughed slightly as with a pleasant fleeting reminiscence. "Come mighty nigh dyin', though—skeered me, fur a fack. Powerful tight squeak he had!"

All at once his eyes, glancing over his shoulder, lighted on Bayne, who had just come to call on the ladies and now stood at the bottom of the flight of the terrace steps. Clenk drew back with an obvious shock. "Why, look-a-hyar, *you* ain't Mr. Briscoe!" he exclaimed insistently, as with a desire to reassure himself. His eyes large, light, distended, were starting out of his head. His jaw quivered violently. The grimy, claw-like hand he extended shook as with a palsy.

When together, Briscoe and Bayne had scant facial resemblance; but apart, that stamp of consanguinity might easily recall for each the face of the other. Bayne, with his wonted subtlety of divination, replied at once, "No, but Mr. Briscoe was my cousin."

"Oh, ho—oh, ho—I see," the old man said, tractable and easily convinced. "I know—Lawd! I got reason ter know that Briscoe's dead. I war afeared o' seein' su'thin' oncommon—his harnt, or some sech. The idee shuk me powerful. I hev had a fever lately. Lemme sit down—I—I—can't stand up. I been hevin' a misery lately in my breast-bone—oh!"—he waved his hand in the air with a pathetic, grasping gesture—"me breath is gone—me breath, me breath——"

He sank down on an iron bench at one side on the velvety turf and feebly gasped.

"I'll get some brandy," Gladys said in a low tone to Lillian, and sped swiftly up the steps toward the house.

Suddenly Clenk partially lifted himself and dived into one of the pockets of his loose coat. He brought up a little red shoe, all tarnished and tobacco-stained, and held it out to Lillian with a faint and flickering smile of bestowal, certain of gratitude as well as recognition. "Does you-uns know that leetle foot?"

Lillian swayed for a moment as if she might fall. Then, with a piercing shriek, she darted forward and seized it from his shaking grasp. She held it up to the light, and as Gladys returned, herself bearing the tray with the glass and decanter, Lillian convulsively clutched her arm and, speechless and trembling, pointed to the name in tarnished gilt on the inside of the sole—her own shoemaker, who had constructed the delicate little hand-sewed slipper!

"Where is he now—where is this child?" Bayne demanded precipitately, his own breath short, his pulses beating in his temples till the veins seemed near bursting.

"I can't rightly say *now*," the old man drawled; "but—but I kin tell you where we-uns lef' him. 'T war a awful bis'ness, that crackin' off Briscoe—that warn't in the plan at all. We-uns war after the revenuer. What right had he ter bust our still an' break up our wu'm and pour our mash an' singlings out on the ground? Ain't it our'n? Ain't the corn an' apples an' peaches our'n? Didn't we grow 'em?—an' what right hev the gover'ment ter say we kin eat 'em, but can't bile 'em—eh? They b'long ter we-uns—an' gosh! the gover'ment can't hender! But we never meant no harm ter Briscoe. Lawd! Lawd! that warn't in the plan at all. But the child viewed it, an', by gosh! I b'lieve that leetle creetur could hev told the whole tale ez straight as a string—same ez ef he war twenty-five year old. That deedie of a baby-child talked sense—horse-sense—he *did*, fur a fack!"

"Where—where——" Lillian was using every power of her being to restrain the screams of wild excitement, to sustain the suspense.

"Where did you last see him?" asked Bayne. He had grown deadly white, and the old man, lifting his face, gazed vaguely from one to the other. Their

intense but controlled excitement seemed subtly imparted to his nerves. The details of the tragedy had become hackneyed in his own consciousness, but their significance, their surfeit of horror, revived on witnessing their effect on others.

"Look-a-hyar, you two an' this woman will stan' up fur me when I gin myself up fur State's evidence, ef I put ye on the track fur findin' Bubby? He's thar all right yit, I'll be bound—well an' thrivin, I reckon. He hev got backbone, tough ez a pine knot."

"Yes, yes, indeed; we pledge ourselves to sustain you," cried Lillian. Bayne was putting the glass of brandy into the grimy, shaking paw, mindful of the old man's shattered composure.

"It be a mighty risk I be a-runnin'"—the old, seamed face was of a deadly pallor and was beginning to glisten with a cold sweat. "I reckon I oughtn't ter tell nuthin' exceptin' ter the officers, but—but—I 'lowed leetle Archie's mother would help me some again them bloodhounds o' the law."

"I'll move heaven and earth to aid you!" cried Lillian.

"See here, I can *promise* that you shall be held harmless, for I am the prosecutor," Gladys struck suddenly into the conversation, pale but calm, every fibre held to a rigorous self-control. "I am Mr. Briscoe's wife, his widow. Now tell me, *where* did you last see that child?"

"Wh—wh—wh—whut? You the widder?" Clenk's eyes were starting from their sockets as he gazed up at her from his crouching posture on the bench, his head sunk between his shoulders, his hand with the untasted glass in it trembling violently.

"An' ye say that ye too will stand by me? Then lemme tell it—lemme tell it now. 'T was—what d'ye call that place?—I ain't familiar with them parts. *Wait*"—as Bayne exclaimed inarticulately—"lemme think a minit." He dropped his head on one of his hands, his arm, supported by the back of the bench, upholding it. His slouched hat had fallen off on the stone pavement, and his shock of gray hair moved in the soft breeze.

The moment's interval in the anguish of suspense seemed interminable to the group. "Drink a little brandy," Bayne counselled, hoping to stimulate his powers.

He evidently heard, and sought to obey. The hand holding the untasted liquor quivered, the glass swayed, fell from his nerveless grasp, and shattered to fragments on the stone pavement.

Bayne sprang to his side and lifted his head. Ah, a drear and ghastly face it was, turned up to the gorgeous sunset, the gentle ambient air, the happy, fleeting shadows of the homing birds.

"Has he fainted?" asked Lillian.

"The man is dead!" Bayne cried with a poignant intonation. "He is dead! He is dead!"

For while they had waited for the word that had eluded him he had gone out into the great wordless unknown. His failing strength had thwarted his will. His spirit had given him the slip.

XIII.

Every appliance of resuscitation known to science was brought into use, but in vain. No scrap of paper, no clue of identification, was found upon the body. The three, bound together in such close ties of sympathy, were stricken as with a new and appalling affliction. The burden was all the heavier for that momentary lightening of a treacherous hope. For a time Bayne could not reconcile himself to this new disaster. So overwhelming indeed, so obvious, was its effect that Lillian, ever with her covetous appropriation of every faculty, her grasping claim on every identity in this sacred cause, feared that despair had at last overtaken him, and that he would succumb and give over definitely the search. The idea roused her to a sort of galvanic energy in promoting the project, and she would continually formulate fantastic plans and suggest to him tenuous theories with feverish volubility, only to have him thrust them aside with a lacklustre indifference that their futility merited.

"He is discouraged, Gladys; he is at the end of his resources," she said aside to her friend. "He can try no more."

"How can *you* believe that?" cried Gladys.

Even in this crisis Lillian noted anew with a wounded amazement the significant smile on the fair face of her friend, the proud pose of her head. Could she arrogate such triumphant confidence in the temper and nature of a man who did not love her?—whose heart and mind were not trusted to her keeping? That doubt assailed Lillian anew in Bayne's absence, and in the scope for dreary meditation that the eventless days afforded it developed a

fang that added its cruelties to a grief which she had imagined could be supplemented by no other sorrow.

It was merely sympathy that animated him in her behalf, she felt sure; it was pity for her helplessness when none other would abet the hopeless effort to recover the child. His conviction that Archie still lived constrained him by the dictates of humanity to seek his rescue. He was doubtless moved, too, by the great generosity of his heart, his magnanimity; but not by love—never by love! How could it be, indeed, in the face of all that had come and gone, and of the constant contrast, mind, body, and soul, with the perfect, the peerless Gladys!

In this, the dreariest of his absences, seldom a word came to the two women waiting alternately in agonized expectation or dull despair. For Bayne was much of the time beyond the reach of postal and telegraphic facilities. In the endeavor to discover some clue to identify that strange visitant of the smiling spring sunset, and thus reach other participants in the crime of the murder and the abduction, Bayne had the body conveyed to the Great Smoky Range, within the vicinity of the Briscoe bungalow, discerning from the speech of the man, as well as from his familiarity with the deed, that he was a native mountaineer. Lillian had desired to bestow upon him, in return for his intention of aid at the last, a decent burial, but the interpretation of the metropolitan undertaker of this commission was so far in excess of the habit of the rustic region that men who had known old Clenk all their lives did not recognize him as he lay in his coffin, clean, bathed, shaven, clad in a suit of respectable black and with all the dignity of immaculate linen, and they swore that they had never before seen him. The alertness of Copenny's guilty conscience sharpened his faculties. His keen eyes penetrated the disguise of this reputable aspect at once, though he sedulously kept his own counsel. He heard the details of the death in the rounds of the mountain gossip, and divined what Clenk's errand had been. He deemed that the effort to turn State's evidence had met its condign punishment, and he felt more assured and secure now that it had been attempted and had failed.

Bayne, however, had scant time to push his investigations here, where indeed the ground had been previously so thoroughly searched, for he was summoned away by another lure of a clue far to the northeast. His recent bitter disappointment, on the verge of a discovery of importance, perhaps enabled him better to bear in this instance the result of a fruitless quest, for he had definitely ceased to hope. He had begun to believe the child was dead. Clenk's words implied no present knowledge of his seclusion. The allusion to a severe illness suggested possibilities of relapse, of a weakening of the constitution as much from lack of proper attention and nourishment as from disease.

On the lonely railway journey from the scene of this latest disappointment, Bayne was dismayed to note from time to time how blank were the hours before him, how his invention had flagged! What to do next, what tortuous path to try, he did not know. Now and again he sought to spur up his jaded faculties to perceive in the intricate circumstances of all his futile plans some fibre of a thread, untried hitherto, that might serve to unravel all this web of mystery. But no! He seemed at the end. His mind was dull, stagnant; his thoughts were heavy; he was oblivious of the surroundings. The incidents of the passing moment scarcely impinged upon his consciousness. He did not share the vexation of his fellow-passengers when a wreck of freight cars on the track bade fair to delay the train some hours, awaiting the clearance of the obstructions. It hardly mattered where he spent the time. He had lost all interests, all hold on other phases of life, and this that he had made paramount, essential, baffled and deluded and denied him, and in its elusiveness it seemed now to have worn him quite out.

Then once more he sought to goad his drooping spirits, to rouse himself to a keener efficiency. He would not give up the emprise, he declared again, he would not be conquered save by time itself. It was rather an instinct, in pursuance of this revival of his resolution, to seek to rid himself of his own thoughts, the constant canvass of his despair; this had necessarily a resilient effect, benumbing to the possibilities of new inspiration. He sought to freshen his faculties, to find some diversion in the passing moment that might react favorably on the plan nearest his heart. He forced himself to

listen, at first in dull preoccupation, to the talk of a group in the smoker; it glanced from one subject to another—the surroundings, the soil, the timber, the mining interests—and presently concentrated on a quaint corner of the region, near the scene of the stoppage, the Qualla Boundary. This was the reservation of a portion of the tribe of Cherokee Indians, the Eastern Band, who nearly a century earlier had evaded, in the dense fastnesses of these ranges, removal with their brethren to the west, and had finally succeeded in buying this mountainous tract of fifty thousand acres.

As Bayne looked out of the window, urging his mind to appraise the human interest of the entourage, to apprehend its significance, he bethought himself of a certain old Cherokee phrase that used to baffle him in his philological studies. He remembered in a sort of dreary wonder that he had once felt enough curiosity concerning this ancient locution to maintain a correspondence with the Ethnological Bureau of the Smithsonian Institution as to its precise signification—and now he could scarcely make shift to recollect it.

He had then been hard on the track of the vanishing past; his wish was to verify, solely for the sake of scholastic accuracy, these words of the ancient Cherokee tongue, the Ayrate dialect, which was formerly the language of their lowland settlements in this region, but which, since the exodus of the majority of these Indians to the west and the fusion of the lingering remnant of their upper and lower towns into this tribal reservation east of the Great Smoky Mountains, has become lost, merged with the Ottare (Atali) dialect, once distinctively the speech of their highland villages only, but now practically modern Cherokee.

As Bayne recalled the circumstances, he noted one of the Qualla Indians loitering about the scene of the wreck. He put a question to him from out the window of the coach, and discovered that he spoke English with some facility. The old habit reasserted itself with inherent energy, and presently Bayne was moved to leave the car and sit on a pile of wood near the track, where, with his new acquaintance, he floundered over verbal perversions of modern changes and lost significations of the language and the contortions of Anglicized idioms, till at length he remarked that if his interlocutor

would act as interpreter he should like to converse on the subject of these words with some old Cherokee who had never learned English and had seldom heard it spoken.

The Qualla Boundary is sufficiently permeated with the spirit of the past to feel that Time is the intimate possession of man. In that languid environment there is no frenzy to utilize it lest it fly away. No man is hurried into his grave within the reservation. It seemed not more strange to the Indian than to the linguist to spend an hour or so in meditating on a queer word that has lost its meaning amidst the surges of change. The tribesman, lending himself readily to the investigation, suddenly bethought himself of the ancient sibyl in her remote cabin on the steep slant of the mountain, among the oldest and the least progressive denizens of the Qualla Boundary.

Despite her arrogations of uncanny foreknowledge of human events, despite her mystic lore of spells and charms, she had no faint presentiment of the fact when Fate came boldly here and laid a hand on her door. None of her familiars of the air, of the earth, gave her warning. Often she thought of this afterward with bitterness, with upbraiding. The Mountain Climber, *Atali Kuli* (the ginseng), must, she was sure, have known of this inimical ascent of the steep, but he only burrowed the deeper, and treacherously made no sign. As to *Agaluga Hegwa*, the great Whirlwind—she would have bidden him arise quickly—"Ha-usi-nuli datule-hu gu!"—but to what avail! Doubtless he was asleep somewhere on the sunny slopes. The Ancient White Fire was covered with ash; not a glimmer did *Higayuli Tsunega* afford her, not a flicker. What a mockery was it that *Kananiski Gigage* should pretend to weave his web so fast, so fine, about the child, and yet suffer its strong meshes to be burst apart by a mere word.

It was not the obsolete word which the visitor sought, for as he sat outside her door in a chair, brought from within the cabin, while she crouched on the threshold, and the interpreter perched on the stump of a tree, an interruption occurred that flung those enigmatic syllables back on the mysterious past forever. "Polly Hopkins" in her poor and ragged calico gown—for the picturesque Indian garb of yore is now but a tradition in the

Qualla Boundary—had barely lifted her head in her flapping old sunbonnet that scarcely disguised its pose of surprised expectation, when a sound came from the interior of the house as turbulent as the approach of a troop of wild horses, and instantly there rushed out into the sunshine a sturdy blond child with wide, daring blue eyes, golden hair, muscular bare legs, arrayed in a queer little frock of blue gingham, and no further garb than the graces of his own symmetry.

For a moment Bayne was like a man in a dream. To be confronted suddenly with the realization of all his hopes, the consummation of all his struggles, took his breath away. He had not been sufficiently acquainted with the boy to recognize him at once in this different attire, and with the growth and vigor of nearly a year's time, but the incongruity of his fair complexion, his blond hair, in this entourage, his exotic aspect, made Bayne's heart leap and every nerve tremble.

Meeting the gaze of the big, unafraid blue eyes, he asked at a venture in English, "And what is your name, young man?"

"Archie Royston," promptly replied the assured and lordly youngster.

"Alchie Loyston," mechanically repeated the old sibyl. Even the glance of her dimmed eyes was a caress as she fondly turned them toward the child.

Bayne looked as if he might faint. A sharp exclamation was scarcely arrested on his lips. He flushed deeply, then turned pale with excitement. For months past, flaring in all the public prints, that name had been advertised with every entreaty that humanity must regard, with every lure that might excite cupidity, with every threat that intimidation could compass. And here, in this sequestered spot, out of the world, as it were, among the remnant of an Indian tribe, of a peculiarly secluded life, of a strange archaic speech and an isolated interest, was craftily hidden the long-lost child. Any ill-considered remark might even yet jeopardize his restoration, might result in his withdrawal, sequestered anew and inaccessible. Julian Bayne became poignantly mindful of precaution. He

affected to write down the Cherokee words as the interpreter and the old sibyl discussed them, but his pencil trembled so that he could hardly fashion a letter. It was an interval to him of urgent inward debate. He scarcely dared to lose sight of the boy for one moment, yet he more than feared the slightest demonstration unsupported.

He was in terror lest he find the situation changed when next he approached the fortune-teller's cabin, a few hours later, but the little blond boy, half nude, was playing in the lush grass before the open door. The visitor was bolder now, being accompanied by officers of the law; so bold indeed that he was able to pity the grief of the poor, unintelligible squaw, volleying forth a world of words of which every tenth phrase was "Alchie Loyston." By what argument she sought to detain him, what claims she preferred, what threats she voiced, can never be known. The sheriff of the county was obdurate, deaf to all intents and purposes. He shook his head glumly when it was suggested that she might remain with the child until his mother should arrive in response to the telegram already sent. "Might poison him—Indians are queer cattle! Mocking-birds will do that if the young ones are caged, through the bars, by jing!"

All night long, like some faithful dog, she lay on the floor outside the door of the room where they kept the child, her face to the threshold; and on the inner side, in emulation and imitation, little Archie lay on the floor and echoed her every groan and responded to her lightest whisper. But sleep was good to him, and when he was quite unconscious the officers took him up and placed him on a bed, while they awaited in great excitement and with what patience they could muster the response to the telegram sent by Bayne, couched in guarded phrase and held well within the facts:

Child here in the Qualla Boundary, answering to description in advertisements. Says his name is Archie Royston. Will not talk further. Well-treated. Held for identification. Awaiting advices.

XIV.

Lillian, at her home in Glaston, replied by wire in that tumult of emotion which each new lure was potent to excite, despite the quicksands of baseless hope that had whelmed its many precursors. Still, she expected only another instance of deliberate and brazen fraud, or crafty and sleek imposture, or, worse still, honest mistake. The little suit-case, packed with all that the child might need, which had journeyed through so many vicissitudes, so many thousand miles, was once more in her hand as she took the train. She never forgot that long night of travel, more poignant than all her anguished journeyings that had preceded it. Hurling through the air, it seemed, with a sense of fierce speed, the varied clangors of the train, the ringing of the rails, the frequent hoarse blasts of the whistle, the jangling of the metallic fixtures, the jarring of the window-panes, all were keenly differentiated by her exacerbated and sensitive perceptions, and each had its own peculiar irritation. She scarcely hoped that she might sleep, and it was only with a dutiful sense of conserving her strength and exerting the utmost power of her will in the endeavor, that she lay down when her berth was prepared. But the seclusion, the darkness within the curtains, oppressed her, for unwittingly the sights and sounds of the outer world had an influence to make her quit of herself, in a measure, and to focus her mind on some trivial object of the immediate present. She drew the blind at the window that she might see the scurrying landscape—the fields, the woods, the river—and now and again the sparkling lights of a city, looking in the distance as if some constellation, richly instarred with golden glammers, had fallen and lay amidst the purple glooms of the hills. For these elevations, and the frequent tunnels as the dawn drew near, gave token that the mountains were not distant; the great central basin of Tennessee lay far to the west; the

engine was often climbing a steep grade, as she noted from the sound. She was going to the mountains, to the mountains—to meet what? Sometimes she clasped her hands and prayed aloud in her fear and heart-ache and woe. Then she blessed the many clamors of the train that had lacerated her tenderest fibres, for they deadened the sound of her piteous plaints, and she was a proud woman who would fain that none heard these heart-throbs of anguish but the pitying God Himself.

She must have slept from time to time, she thought, for she was refreshed and calmer when she looked forth from the window and beheld the resplendent glories of the sunrise amidst the Great Smoky Mountains. Vast, far-stretching, lofty, as impressive as the idea of eternity, as awesome as the menace of doom, as silent as the unimagined purposes of creation, they lifted their august summits. They showed a deep, restful verdure in the foreground, and in more distant reaches assumed the blandest enrichments of blue, fading and fading to mere illusions of ranges, and finally dreaming away to the misty mirages of the horizon.

Lillian was ready, erect, tense, waiting, for miles and miles before her destination could be reached, when suddenly the conductor appeared, his face alive with the realization of sensation. The sheriff of the county had flagged the train. He had a vehicle in waiting for Mrs. Royston, in order that she might curtail the distance, as the house where the child was held was on the verge of the Qualla Boundary, and the nearest station was still some miles further. There were few words spoken on that hasty morning drive under the vast growths of the dense and gigantic valley woods. The freshness of the forest air, the redundant bloom of the rhododendron, the glimpse now and again of a scene of unparalleled splendor of mountain range and the graces of the Oconalufy River, swirling and dandering through the sunshine as if its chant in praise of June must have a meaning translated to the dullest ear—all was for Lillian as if it had not been. The officers had cast but one glance at her tense, pale face, then turned their eyes away. The suspense, the pain, the torture of fear could end only with that signal moment of identification. Though the group respected her sorrow in silence, they themselves experienced the rigors of uncertainty and agitation when the log cabin came into view amidst the laurel, and every

man of them trooped in, following her, when the door opened and she was ushered into the little, low-ceiled room, so mean, so rough, so dingy of hue. But for her it held the wealth of the universe, the joy of all the ages. There upon the bed lay her sleeping child, larger, more vigorous, than she remembered him, garbed in a quaint little garment of blue gingham; his blond hair clipped close, save for two fine curls on top, worn indeed like a scalp-lock; his long lashes on his cheeks, rosy ripe; his red lips slightly parted; his fine, firm-fleshed, white arms tossed above his head; his long, bare legs and plump, dimpled feet stretched out at their full length. His lips moved with an unformulated murmur as her hysterical, quavering scream of joyful recognition rang through the room. Then he opened his big blue eyes to find his mother bending over him. He did not recognize her at once, and after a peevish sleepy stare he pushed her aside, calling plaintively for his precious "Polly Hopkins."

"Oh, bring Polly Hopkins, whoever she is!" cried the poor rebuffed mother. "And Heaven bless her if she has been good to him."

But when the dismal old squaw blundered into the room, more blinded by grief and tears than infirmity, the identity of his visitor came back suddenly to him with the recollections of the past, and in all the transcendent joy of an invaluable possession he called out, "Look, mamma! Ain't her pretty? So-o pretty! Me s-sweet Polly Hopkins!" And sitting up in bed, he threw his arms around both as they knelt beside it, and all three wept locked in the same tender embrace.

For Lillian would not hear of the implication of "Polly Hopkins" in the suspicion of the abduction, and the rigors of the law were annulled so far as she was concerned. On the contrary, Mrs. Royston's first effort was to ameliorate the old woman's condition, to take her at once to their home to be cherished there forever. When the ancient sibyl, affrighted at the idea of removal and change, positively refused, the mother tenderly begged that she would tell then what could be done for her.

"Polly Hopkins" asked but one boon: the boy. That was the limit of her demand.

Lillian was fain to solace her earnest desire to bestow rich reward by settling a comfortable annuity on her and contracting for a snug, stanch house to be built here, with every appliance that could add to her comfort, and for this "Polly Hopkins" cared not at all; for her poor home had been full of joy with "Alchie Loyston."

"I am glad I can afford it," said Lillian, with a gush of tears—how long it had been since she could say she was glad of aught! "Though she will not come with me, I shall have the best specialist in the United States to leave everything and come here and take the cataracts from her eyes. At least, she shall have her sight restored."

But alack, it was not "Alchie Loyston" whom she should see!

As for Lillian, she would scarcely consent to be separated from the child for one moment. The authorities conceived it necessary to take his statement in private—but allowed her to stand just outside the door—before his mind could be influenced by the comments of others or the involuntary assimilation of their views with his knowledge of the facts, for there was still a large reward for any information leading to the apprehension of the murderers of Edward Briscoe. Little Archie had obviously been a witness of that catastrophe and kidnapped to prevent his revealing the identity of its perpetrators. Indeed, this was a well-founded fear, for he was very glib with the details of that momentous occasion, and he had no sooner mentioned the name of Phineas Copenny, or "Phinny 'Penny," in his infantile perversion, than the North Carolina official turned aside and indited a telegram to the sheriff of the county in Tennessee where the crime had been committed.

None of his capacity to make himself understood had the boy lost by the craft of the moonshiners in placing him where he would never hear an English word and was likely to forget the language. A very coherent story he told still later when he was brought into the criminal court at Shaftesville, being the capital of the county in Tennessee where the deed was perpetrated, and confronted by Copenny. One of the moonshiners, arrested on suspicion of complicity with the murder, had turned State's evidence and had given testimony as to the details of the plot to ambush the

revenue officer, and the delegation of Phineas Copenny and two others to execute it. Another testified that he had afterward heard of the murderous plan and of the mistake in the identity of the victim; but as neither of these parties was present at the catastrophe, the story of the child was relied on as an eye-witness to corroborate this proof. The admission of his testimony was hotly contested because of his tender years, despite the wide inclusiveness of the statute, and its inadequacy would possibly have resulted in a reversal of the case had an appeal been taken. But Phineas Copenny made no motion for a new trial and desired no appeal. He had feared, throughout, the possible capture and conclusive testimony of Drann and Holvey, and, lest a worse thing befall him, he accepted a sentence of a long term in the penitentiary. In view of the turpitude of "lying in wait," though a matter of inference and not proof, he doubted the saving grace of that anomaly of the Tennessee law that in order to constitute murder in the first degree the victim of a premeditated slaughter must be the person intended to be slain.

There was scant doubt as to his guilt in the minds of the jury. The boy singled out Copenny from a crowd in which he had been placed to test his recognition by the little witness. He remembered the man's name, and called him by it. He gave an excited account of the shooting, although this was the least intelligible part of his testimony, for he often interrupted himself to exclaim, "Pop-gun—*bang!*" disconnectedly, as the scene renewed itself in his memory. He explained the disappearance of Mr. Briscoe and the mare by the statement that "Phinny runned out—pop-gun—*bang!*—an' bofe felled over the bluff." He called the moonshiners' cave a cellar, however, and declared that he went hunting for his mamma in a boat, and the counsel for the defence made the most of such puerilities and contradictions. But the child was very explicit concerning the riving from him of his coat by Phineas Copenny, and the plan to throw it over the bluff, and it made a distinct impression on the jury when he added that Copenny took his hat also—for no mention had been made of the discovery of the hat in the quagmire in the valley—and that Copenny had broken the elastic that held it under his chin and this snapped his cheek. He could, nevertheless, give no account how he reached the Qualla Boundary, and he broke off suddenly,

dimpling, bright-eyed, and roseate, to ask the judge if he knew "Polly Hopkins."

"Her is so-o pretty!" he cried out in tender regret.

Mrs. Royston was nettled by the laughter elicited by this query, with its obvious fervor of enthusiasm, for she divined that the merriment of the crowd was charged with ridicule of the incongruous object of his callow adoration, the forlorn old fortune-teller, who had been so gentle and so generous, albeit so alien to the civilization of the present day. Lillian could but realize that the ministering angel is of no time or nationality, and the transcendent beauty of its apparition may well be a matter of spiritual and not merely visual perception. The heart of a woman is no undecipherable palimpsest for the successive register of fleeting impressions. Here was written in indelible script the tenderest thought of affection, the kindest charity, and all the soft graces of fostering sentiment, with no compensatory values of reciprocal loyalty, or the imposing characters of authority. For the old squaw could not even understand the justice of the dispensation; it seemed to her that with impunity she was deserted, denied; her plea was a jest to right reason; her love, in which the child had once rejoiced, was superfluous, worthless, now that he had come to his own; her poor hearth, which his bright infantile smiles had richly illumined, was dark, desolate; the inexorable logic of law and worldly advantages was beyond her ken, and she felt that she had only rescued and cherished the little waif that she herself might be lacerated by grief and bereaved for his sake, and fain to beat her breast and to heap ashes on her head. Poor, poor, "pretty Polly Hopkins!"

Cheering news of her, however, now and again came from the mountains. The noted oculist, after his final visit to her, stopped over in Glaston to report to Mrs. Royston the complete success of the treatment, knowing the gratification the details would afford. He brought, too, the intelligence that she was free of her old torture from rheumatism, which had been of the muscular sort, resulting from exposure and deprivation, and had yielded to the comforts of the trig, close house that Mrs. Royston had built for her, and the abundance of warm furnishings and nutritious food, a degree of luxury

indeed which was hardly known elsewhere in the Boundary. Her prosperity had evolved the equivocal advantage of restoring her prestige as a sibyl, and she had entered upon a new lease of the practice of the dark arts of fortune-telling and working charms and spells. He gave a humorous account of her expressions of gratitude to him for the restoration of her sight, which facetiousness Bayne, who chanced to be present, perceived did not add to Mrs. Royston's pleasure; for she regarded "Polly Hopkins" very seriously indeed. Before the physician quitted the "Boundary," the old squaw bestowed upon him, through the interpreter, certain secret magic formulæ for working enchantments on his city patients, and thereby effecting rapid cures and filling his coffers. Knowing of Bayne's hobby for linguistics, the oculist jocularly turned these archaic curios over to him. In that connection Bayne recounted that after the child had departed with his mother from the mountains, he himself being detained by final arrangements with the authorities, his interest in researches into the arcana of old Cherokee customs had been revived by seeing the sibyl seated on the ground, swaying and wailing and moaning, and casting ashes on her head as if making her mourning for the dead. At the time he had marked the parity of the observance with the Hebraic usage, and he intended to make an examination into the origin of the curious tradition of the identity of the American Indians with the lost tribes of Israel.

Train-time forced the oculist to a hasty leave-taking, and it was only after he was gone that Bayne noticed the evidence of restrained emotion in Lillian's face. Bayne had been about to conclude his own call, which concerned a matter of business, the claim of a reward which he considered fraudulent, but he turned at the door, his hat in his hand and came back, leaning against the mantel-piece opposite her. He noted that the tears stood deep in her eyes.

"I can't bear to think of her unhappiness," she said, "when I consider all I owe to her."

"You had better consider what you owe to me," Bayne gayly retorted, seeking to effect a diversion.

"Oh, you, you! But for *you*! When I think of what you have done for Archie, and for me, I could fall down at your feet and worship you!" she exclaimed with tearful fervor.

"Oh, oh, this is so sudden!" he cried, with a touch of his old whimsicality.

"Don't—don't make fun of me!" she expostulated.

"Bless you, I am serious indeed! I expected something like this, but not so soon; and, in fact, I expected to say it *myself*—but I could not have done it better!"

"Did you really intend to say it, to come back to me?" She gazed appealingly at him.

"As soon as we had time for such trifles." He would not enter into her saddened mood.

"But one thing I want to know: did you *really* intend it, or was it only my cruel affliction that brought you back to me—motives of sheer humanity—because no one else would help me, because they thought I was the prey of frenzied fancies to believe that Archie still lived?"

Julian was silent for a moment, obviously hesitating. Then he reluctantly admitted, "No, I should never have come back."

She threw herself back in the chair with a little pathetic sigh. He looked at her with a smile at once tender and whimsical. She too smiled faintly, then took up the theme anew.

"But, Julian," she persisted, "it is very painful to reflect that you had deliberately shut me out of your heart forever; that when you saw me again you had no impulse to renew the past. Had you none, really?"

The temptation was strong to give her the reassurance she craved. She had suffered so bitterly that a pang of merely sentimental woe seemed a gratuitous cruelty. Yet he was resolved that there should never come the

shadow of falsehood between them. He was glad—joyous! The future should make brave amends for the past. He sought to cast off the bitter retrospection with which she had invested the situation. His gay laughter rang out. "Madam, I will not deceive you! I intended that you should *never* get another shot at me; but circumstances have been too much for me—and I have ceased to struggle against them."

*** END OF THE PROJECT GUTENBERG EBOOK THE ORDEAL: A
MOUNTAIN ROMANCE OF TENNESSEE ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.